LOCAL RULES

OF THE

UNITED STATES BANKRUPTCY COURT

DISTRICT OF NEW JERSEY

Dated: August 1, 2026

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D.N.J. LBR 1001-1. Scope of Rules

(a) Scope. These Local Bankruptcy Rules govern procedure before the United States Bankruptcy Court for the District of New Jersey, and supplement the United States Bankruptcy Code and the Federal Rules of Bankruptcy Procedure.

(b) Modification. The court may modify the application of a Local Bankruptcy Rule in a particular case or proceeding.

(c) Citation. A Local Bankruptcy Rule should be cited as "D.N.J. LBR ___."

2025 Comment

In addition to compliance with these Rules, parties should be guided by the judicial preferences of the presiding judge, which may be found in the *Judges' Info tab* on the court's website.

2015 Comment

Certain of these Rules are derived from the Local Civil Rules of the United States District Court for the District of New Jersey. A Local Civil Rule not incorporated into these Rules does not apply.

The court's General Orders, Guidelines, and Local Forms also govern procedure before the court. They may be found on the court's website (www.njb.uscourts.gov).

D.N.J. LBR 1002-1. Commencement of Case

A petition commencing a case must be filed in the vicinage in which the debtor is domiciled or in which the debtor maintains its residence, principal place of business, or principal assets.

2015 Comment

This Rule is amended to eliminate petition content requirements that already appear in Bankruptcy Rule 1003 or Official Form B1.

The court is divided into three units known as "vicinages," based on the locations of the three federal courthouses in the District of New Jersey.

The Newark vicinage consists of Bergen, Essex, Hudson, Morris, Passaic, Sussex, and Union counties.

The Trenton vicinage consists of part of Burlington (except for the townships of Cinnaminson, Delran, Edgewater Park, Evesham (Marlton), Maple Shade, Moorestown, Mount Laurel, Palmyra, Riverside and Riverton), Hunterdon, Mercer, Middlesex, Monmouth, Ocean, Somerset, and Warren counties.

The Camden vicinage consists of Atlantic, part of Burlington (the townships of Cinnaminson, Delran, Edgewater Park, Evesham (Marlton), Maple Shade, Moorestown, Mount Laurel, Palmyra, Riverside and Riverton), Camden, Cape May, Cumberland, Gloucester, and Salem counties.

D.N.J. LBR 1002-2. Chapter 11 Complex Case Eligibility and Procedures

(a) Eligibility. A Chapter 11 debtor is eligible for designation as a Complex Case if the debtor has $50 million or more in assets or $50 million or more in liabilities, aggregated for jointly administered cases; 1,000 or more creditors; or may be considered a case of high public interest.

(b) Designation. A Chapter 11 debtor whose case meets the eligibility requirements under subdivision (a), and who is seeking designation as a Complex Case, must file, concurrently with the order for relief, Local Form *Application for Designation as a Complex Case* and Local Form *Order Granting Designation as a Complex Case*.

(c) Applicability of procedures. The *General Order Governing Chapter 11 Complex Case Procedures* is incorporated by reference into this Rule and applies in a Complex Case. A Local Form *Case Management Order* must attach as an exhibit, the General Order. Provisions outside the scope of the General Order must be highlighted for the court's review.

2024 Comment

This Rule is new. It introduces the court's requirements for designation as a Complex Case, governing procedures, and required local forms.

D.N.J. LBR 1006-1. Filing Fee

(a) Installment payments. Official Bankruptcy Form 103A *Application for Individuals to Pay the Filing Fee in Installments* must be filed at the time of the filing of the petition and be accompanied by a first installment payment of not less than 25 percent of the filing fee.

(b) Waiving the filing fee. An Official Bankruptcy Form 103B *Application to Have the Chapter 7 Filing Fee Waived* must be submitted at the time of the filing of the petition. If the court denies the application, the first installment payment equal to an amount not less than 25 percent of the filing fee must be paid not later than 14 days after filing the petition.

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2016 Comment

This Rule is new. It requires an initial installment payment of at least 25 percent of the filing fee when the petition and the *Application for Individuals to Pay the Filing Fee in Installments* are filed.

D.N.J. LBR 1007-1. Mailing List

(a) Instructions. The mailing list required by Bankruptcy Rule 1007 must comply with the instructions in the *CM/ECF User's Guide* available on the court's website.

(b) Amendment of schedule. The mailing list must be updated when an amendment to schedule D, E, F, G, or H is filed.

2025 Comment

When amending a schedule under subdivision (b), this Rule should be read in conjunction with D.N.J. LBR 1009-1.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 1007-2. The Rule eliminates obsolete formatting requirements and replaces the term "matrix" with "mailing list."

D.N.J. LBR 1009-1. Amending Schedules or List of Creditors

A debtor seeking to amend Schedules D through H or the List of Creditors must file the corresponding Official Bankruptcy Form. If the amendment adds a creditor to Schedule D, E, F, G, or H, the debtor must also file an Amended List of Creditors, and include only the added creditor.

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2016 Comment

This Rule is amended to require the use of Official Forms B 106 through B 106 J-2 and delete reference to discontinued Local Form, *Amendment to Schedule D, E, F, G, H or List of Creditors*.

An individual debtor must also submit Official Forms, *Declaration about an Individual Debtor's Schedules* (106Dec) and an updated *Summary of Your Assets and Liabilities and Certain Statistical Information* (106Sum) when amending a Schedule.

A non-individual debtor must also file Official Forms, *Declaration Under Penalty of Perjury for Non-Individual Debtors* (202) and an updated *Summary of Assets and Liabilities (for Non-Individuals)* (206Sum) when amending a schedule.

2015 Comment

The service requirements for an amendment are provided in Local Form *Order Respecting Amendment to Schedule D, E, F, G, H, or List of Creditors*.

D.N.J. LBR 1015-1. Joint Administration

A petition initially filed by an individual debtor may not be amended to add a spouse as a joint debtor. The spouse may file a separate voluntary petition, and move for joint administration of the cases.

2025 Comment

For the joint administration of Chapter 11 Complex Cases, parties are directed to *General Order Governing Chapter 11 Complex Case Procedures*.

2016 Comment

This Rule is new. It clarifies that a voluntary petition filed by a debtor may not be amended to add a spouse. The spouse must file a separate voluntary petition, and move for joint administration of the cases under Bankruptcy Rule 1015(b). This Rule does not preclude the filing of a joint petition.

D.N.J. LBR 1016-1. Death or Finding of Incompetency of a Debtor

Within 30 days of learning of (i) the death, or (ii) a finding of incompetency of a debtor through appropriate legal process, debtor's attorney must file Local Form *Notice of Death or Finding of Incompetency of a Debtor*. Debtor's attorney must also separately file the certificate of death or the court order pertaining to incompetency or guardianship. The certificate of death or court order pertaining to incompetency or guardianship will be immediately restricted from public viewing by the clerk's office without the necessity of a motion under these Rules. In the case of a self-represented debtor, any person who becomes aware of a debtor's death or incompetency may also file said Local Form and the certificate of death or court order pertaining to incompetency or guardianship. Any relief related to the death or incompetency of a debtor must be requested by separate motion.

2025 Comment

The amendments to this Rule are stylistic.

2024 Comment

This Rule is amended to include the requirements for filing a certificate of death or court order pertaining to incompetency or guardianship.

2023 Comment

This Rule is new. It is meant to facilitate notice to the court upon the death or finding of incompetency of a debtor.

D.N.J. LBR 1020-1. Subchapter V Designation

(a) Designation within 14 days after filing. A debtor that did not elect in the original petition to have Subchapter V of Chapter 11 apply, may make the election by filing an amended petition within 14 days after the date of filing, or in an involuntary petition, file a statement within 14 days after entry of the order for relief. All Subchapter V deadlines will run from the date of the filing of the original petition or entry of the order for relief.

(b) Designation after 14 days. After the initial 14-day period, a debtor must file a motion seeking permission to have Subchapter V of Chapter 11 apply. Any request for an extension of the Subchapter V deadlines must be part of the motion and the motion must be served on the parties designated in Bankruptcy Rule 1020(c).

2025 Comment

The amendments to this Rule are stylistic.

2023 Comment

This Rule is new. It addresses the procedures for opting for Subchapter V after the petition has been filed or an order for relief has been entered. The debtor must promptly email chambers to inform the assigned judge of either (i) the amended petition, or (ii) in an involuntary case, a statement consistent with Federal Rule of Bankruptcy Procedure 1020(a), so that the correct deadlines may be set in the case. Failure of the debtor to ensure that the deadlines are updated on the court's docket does not excuse compliance with the deadlines in Subchapter V.

D.N.J. LBR 2002-1. Certification of Service; Change of Address

(a) Certification of service. A party seeking relief from the court must file Local Form *Certification of Service*.

(b) Change of address. A party changing its address during a case or proceeding must file Local Form *Change of Address* in each affected case or proceeding.

2025 Comment

For a Chapter 11 Complex Case, parties should be guided by Section IV(b)(iv) of the *Chapter 11 Complex Case Procedures*.

2021 Comment

This rule is amended to clarify that a separate *Change of Address* form must be filed in each main case and adversary proceeding where the address of the party needs to be updated.

2015 Comment

This Rule is new. Use of the local form required under subdivision (a) simplifies the court's review of service.

Subdivision (b) provides a uniform method for informing the court, a trustee, and any affected party of a change of address.

D.N.J. LBR 2004-1. Examinations

(a) Examination on parties' agreement. A motion under Bankruptcy Rule 2004(a) is not required if the party from whom an examination or document production is sought agrees to voluntarily appear or produce documents or electronically stored information.

(b) Examination on subpoena. An attorney for a party in interest seeking to compel an examination or production of documents or electronically stored information under Bankruptcy Rule 2004 may serve National Director's Form 2540 *Subpoena for Rule 2004 Examination*; a motion is not required. A self-represented party seeking to compel an examination or production of documents or electronically stored information must file an application for an order compelling discovery.

(c) Date and place of examination. A subpoena issued under subdivision (b) must set the examination or document or electronically stored information production not earlier than 14 days after service of the subpoena. The examination or document or electronically stored information production must take place at the location set by the party issuing the subpoena, provided that the location complies with Federal Rule 45(c). The parties may agree to modify these requirements.

(d) Quashing or modifying subpoena. On motion of the examinee or a party in interest, the court may quash or modify a subpoena issued under subdivision (b). The filing of the motion prior to the date set for examination or document production stays the subpoena until the court rules on the motion.

(e) Compelling attendance and production of documents. If the examinee fails to comply with a subpoena issued under subdivision (b) and fails to file a motion under subdivision (d), the party issuing the subpoena may file a motion for an order directing an examination or document production under Bankruptcy Rule 2004.

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2021 Comment

Subdivisions (a), (b), and (c) of this Rule are amended to include electronically stored information, in accordance with changes to Bankruptcy Rule 2004 (effective December 1, 2020).

2016 Comment

Subdivision (b) of this Rule is amended to reference the change in numbering of the National Director's Form to B2540 *Subpoena for Rule 2004 Examination*.

2015 Comment

An attorney may serve a Bankruptcy Rule 2004 subpoena without a court order.

Subdivision (c) provides that the location set by the issuer of the subpoena will not be subject to challenge if the location is within the geographical limits specified in Federal Rule 45(c).

Local Bankruptcy Rule 9016-1 addresses other types of subpoenas.

D.N.J. LBR 2014-1. Employing Professionals

(a) General requirements. An applicant seeking approval of employment of a professional person must file and serve Local Forms *Application for Retention of Professional, Certification of Professional in Support of Application for Retention of Professional* and *Order Authorizing Retention* on the debtor, the trustee, secured creditors, official committees, and parties requesting notice of all proceedings.

(b) Objection.

(1) If an application is filed within 21 days after the filing of the petition, an objection must be filed and served within the later of:

(A) 14 days after the filing of the application; or

(B) 21 days after the filing of the petition.

(2) If an application is filed after the initial 21-day period, an objection must be filed and served within 7 days after the filing of the application.

(3) If an objection is filed, the court may conduct a hearing on the objection in its discretion.

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2021 Comment

Subdivision (b) is amended to clarify the objection period, based on the filing date of an employment application.

2015 Comment

Subdivision (a) is amended to add a reference to the relevant Local Forms.

Local Bankruptcy Rule 2014-2 addresses the requirements for the retention of an auctioneer.

Local Bankruptcy Rule 6004-4 addresses the requirements for the retention of a liquidator.

Bankruptcy Rule 6003 provides that unless necessary to avoid harm, the court will not grant an application under Bankruptcy Rule 2014 within the first 21 days of a case. The 14 day objection period in subdivision (b) balances Rule 6003's goal of alleviating "some of the time pressures present at the start of a case" with a professional person's interest in obtaining a prompt determination on an employment application.

D.N.J. LBR 2014-2. Employing an Auctioneer

(a) Additional requirements for auctioneers. An application for employment of an auctioneer must contain, in addition to the requirements under Bankruptcy Rule 2014 and Local Bankruptcy Rule 2014-1, the following information:

(1) the auctioneer's qualifications and prior experience with the liquidation or sale of similar property;

(2) a description of the property to be sold and its location;

(3) the proposed method of calculation, including rates and formulas, of the auctioneer's compensation;

(4) an estimate of all costs and expenses, including labor, security, advertising, delivery, mailing, and insurance, for which the auctioneer seeks reimbursement from the sale proceeds;

(5) whether the auctioneer or one of its principals has been convicted of a criminal offense; and

(6) proof of a surety bond in favor of such party as the court may direct and in an amount at least equal to the estimated gross proceeds of sale, or proof of an adequate blanket bond. The bond must be conditioned upon the faithful and prompt performance of the auctioneer's duties; an accounting for all monies and property that may come into the auctioneer's possession, control, or custody; and compliance with rules, orders, and judgments of the court. The auctioneer must certify that the bond is presently in effect, and that it will remain so through the date of turnover of the auction proceeds.

(b) Waiver of fee application requirement. An applicant may apply for a waiver of the requirements of Local Bankruptcy Rule 2016-1, unless the compensation and expenses sought exceed the estimate in the application for retention.

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 2014-1(c).

D.N.J. LBR 2014-3. Alternative Procedure for a Flat Fee in a Chapter 13 Case

In a Chapter 13 case, the court may authorize the retention of a professional on a flat fee basis and waive the requirements of Local Bankruptcy Rule 2016-1 if the fee does not exceed $1,000 and the retention order provides that payment may be made only on satisfactory completion of services.

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2015 Comment

This Rule is new. A fee application is no longer required in certain Chapter 13 flat fee cases.

D.N.J. LBR 2016-1. Application for Compensation and Reimbursement of Expenses

(a) Compensation on an hourly rate basis. The statement of the services rendered, time expended, expenses incurred, and amounts requested under Bankruptcy Rule 2016 must contain:

(1) for an application for compensation under $10,000:

(A) the date and docket number of the applicant's order of retention or authorization;

(B) the date and docket number of any administrative fee order providing for interim compensation;

(C) a description of services rendered;

(D) the time spent in 1/10th of an hour increments by date and person, with applicable time sheets attached;

(E) the billing rate for each person who rendered services;

(F) the total time spent by each person who rendered services;

(G) a list of actual expenses summarized by category; and

(H) a narrative explaining the nature of the work performed and the results achieved; and any circumstances not apparent from the description of services or that the applicant seeks to emphasize, including special employment terms, billing or expense policies, voluntary reductions, reasons for the use of multiple professionals for a particular activity, and reasons for substantial time billed for a particular activity.

(2) for an application for compensation of $10,000 or more or, in Chapter 13 cases, an application for compensation and reimbursement of necessary expenses for any amount:

(A) Local Form *Fee Application Cover Sheet* or, in Chapter 13 cases, Local Form *Chapter 13 Debtor's Attorney Fee Application Cover Sheet*;

(B) a description of services rendered, by date and person;

(C) the time in 1/10th of an hour increments spent by each person, with applicable time sheets attached; and

(D) a narrative explaining the nature of the work performed and the results achieved; and any circumstances not apparent from the description of services or that the applicant seeks to emphasize, including special employment terms, billing or expense policies, voluntary reductions, reasons for the use of multiple professionals for a particular activity, and reasons for substantial time billed for a particular activity.

(b) Compensation on a contingent fee basis. The statement of the services rendered, time expended, expenses incurred, and amounts requested under Bankruptcy Rule 2016 must contain:

(1) the date and docket number of the applicant's order of retention or authorization;

(2) a list of actual expenses summarized by category;

(3) a narrative explaining the nature of the work performed and the results achieved; and any circumstances not apparent from the description of services or that the applicant seeks to emphasize, including special employment terms, billing or expense policies, voluntary reductions, reasons for the use of multiple professionals for a particular activity, and reasons for substantial time billed for a particular activity; and

(4) an explanation of the calculation of the fee and expense request.

(c) Compensation on a commission basis. The statement of the services rendered, time expended, expenses incurred, and amounts requested under Bankruptcy Rule 2016 must contain:

(1) the date and docket number of the applicant's order of retention or authorization;

(2) a list of actual expenses summarized by category;

(3) a narrative explaining the nature of the work performed and the results achieved; and any circumstances not apparent from the description of services or that the applicant seeks to emphasize, including special employment terms, billing or expense policies, voluntary reductions, reasons for the use of multiple professionals for a particular activity, and reasons for substantial time billed for a particular activity; and

(4) an explanation of the calculation of the fee and expense request.

(d) Exemption for certain real estate brokers. A real estate broker who is retained under Local Bankruptcy Rule 2014-1 and whose fees and expenses are approved in an order authorizing the sale of real property and the payment of certain professionals at closing under Local Bankruptcy Rule 6004-5 is exempt from this Rule.

(e) Compensation on a flat fee basis. The application must contain:

(1) the date and docket number of the applicant's order of retention or authorization; and

(2) a statement indicating that the purpose for which the applicant was retained has been fulfilled.

(f) Other compensation arrangements. In any other circumstances, the statement of the services rendered, time expended, expenses incurred, and amounts requested under Bankruptcy Rule 2016 must contain:

(1) a narrative explaining the grounds on which the applicant seeks allowance of fees and expenses; and

(2) to the extent applicable, the items required in an application of an hourly rate applicant under subdivision (a) or a contingent fee applicant under subdivision (b).

(g) Request for reimbursement of expenses of a committee member. An official committee member may submit a list of actual expenses summarized by category.

2025 Comment

The amendments to this Rule are stylistic.

2019 Comment

Subdivisions (a)(2) and (a)(2)(A) are amended to reflect the new requirement that all Chapter 13 fee applications include a cover sheet.

2015 Comment

This Rule has been significantly revised to accommodate both the electronic filing process and the variety of compensation arrangements in bankruptcy proceedings. The Rule now allows for payment of both flat fee professionals and real estate brokers retained on a commission basis without the need for a full fee application.

The required narrative assists the court in its review of fee applications consistent with the precedent established in In re Busy Beaver Building Centers, Inc., 19 F.3d 833 (3d Cir. 1994) and Zolfo Cooper & Co. v. Sunbeam-Oster Co., Inc., 50 F.3d 253 (3d Cir. 1995).

The procedure for compensating auctioneers is now found in Local Bankruptcy Rule 2016-2.

D.N.J. LBR 2016-2. Application for Compensation of an Auctioneer

If the court has under Local Bankruptcy Rule 2014-2(b) granted a waiver of the fee application requirement, the auctioneer must file Local Form *Notice of Proposed Auctioneer Compensation* not later than 21 days before payment of compensation. If an objection is filed, the court may require the applicant to file an application for compensation and reimbursement of expenses under Local Bankruptcy Rule 2016-1 or may schedule a hearing.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 2016-1(g).

D.N.J. LBR 2016-3. Application for Interim Compensation and Reimbursement of Expenses in a Chapter 11 Case; Monthly Fee Statement

(a) Motion for authority. A debtor seeking authorization for allowance of compensation of professionals on a monthly basis must file a motion for an administrative fee order. The debtor must serve a copy of the order on all parties served with the motion; all affected professionals; and all parties listed in subdivision (b)(1).

(b) Monthly fee statement.

(1) Not later than the 25th day of the month following the month for which compensation is sought, a professional seeking compensation under an administrative fee order must file and serve, by electronic transmission, hand delivery, or overnight delivery, or by any means directed by the court, a monthly fee and expense statement on the following parties:

(A) the officer designated by the debtor as responsible for such matters;

(B) the debtor;

(C) any official committee;

(D) the United States trustee;

(E) any secured creditor;

(F) any post-petition lender;

(G) any party requesting notice of all proceedings; and

(H) any other party designated by the court.

(2) A monthly fee statement must comply with Local Bankruptcy Rule 2016-1(a).

(c) Objection. An objection to a monthly fee statement must be filed and served on the professional and the parties listed in subdivision (b)(1) not later than 14 days after service of the statement. The objection must set forth the nature of the objection and the amount of fees and expenses at issue. Grounds for objection include: (i) the debtor's failure to timely file monthly operation reports; and (ii) the debtor's failure to remain current with administrative expenses and fees under 28 U.S.C. § 1930.

(d) Payment.

(1) On the expiration of the objection deadline under subdivision (c), a professional may file and serve on the parties listed in subdivision (b)(1) Local Form *Certification of No Objection* or *Certification of Partial Objection*, and then receive 80% of the fees and 100% of the expenses not subject to an objection. The professional may seek authorization as part of the next interim or final fee application to receive the remaining 20% of fees not subject to an objection.

(2) If the parties resolve an objection and if the professional files and serves on the parties listed in subdivision (b)(1) a statement indicating that the objection is withdrawn and describing the terms of the resolution, the debtor may pay in accordance with subdivision (d)(1) that portion of the monthly fee statement which is no longer subject to an objection.

(3) If the parties are unable to reach a resolution of the objection not later than 14 days after the deadline for filing an objection under subdivision (c), the professional may either (i) file a response to the objection together with a request for payment of the fees and expenses to which the objection applies; or (ii) forgo payment of those fees and expenses until the next interim or final fee application or another date directed by the court.

(e) Fee application.

(1) A professional who has received monthly payments under an administrative fee order must, at four month intervals or such other intervals directed by the court, file and serve on the parties listed in subdivision (b)(1) an interim application under § 331 of the Code for allowance of the compensation and reimbursement of the expenses sought in the monthly statements issued during the applicable period.

(2) The interim fee application must include a summary of the monthly fee statements that are the subject of the request and any other information requested by the court.

2025 Comment

The amendments to this Rule are stylistic.

2015 Comment

The text of this Rule was formerly part of the Appendix to Local Bankruptcy Rule 2016-1(h), which incorporated the Guidelines Governing Procedures for Payment of Interim Compensation and Reimbursement of Expenses to Professionals in Chapter 11 Cases.

D.N.J. LBR 2016-4. Application for Final Compensation and Reimbursement of Expenses in a Chapter 11 Case

An application for allowance of final compensation and reimbursement of expenses must be filed not later than 90 days after entry of the order confirming a Chapter 11 plan.

2025 Comment

The amendments to this Rule are stylistic.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 2016-1(i).

D.N.J. LBR 2016-5. Compensation of Debtor's Attorney in a Chapter 13 Case

(a) Disclosure of compensation. The attorney must file with the petition Local Form *Disclosure of Chapter 13 Debtor's Attorney Compensation*. The attorney must select a compensation method as set forth in subdivisions (b) or (c).

(b) Standard fee. An attorney who charges a fee of $6,000 or less is not required to file an application for compensation. The standard fee includes all services and reimbursable necessary expenses required to confirm a plan, including administrative services required subsequent to confirmation. The attorney may file an application for compensation and reimbursement of necessary expenses under Local Bankruptcy Rule 2016-1 for the following services which are excluded from the standard fee:

(1) representation of the debtor in an adversary proceeding;

(2) representation of the debtor in loss mitigation/loan modification efforts;

(3) representation of the debtor in postconfirmation filings and matters brought before the court.

(c) Hourly billing. An attorney who elects hourly billing must file and serve on the debtor and the Chapter 13 trustee an application for compensation and reimbursement of necessary expenses under Local Bankruptcy Rule 2016-1 not later than 7 days after the date of the order confirming the Chapter 13 plan.

(d) Application for additional preconfirmation fees and expenses. An attorney who elected a standard fee under subdivision (b) may seek additional compensation and reimbursement of necessary expenses by filing an application under Local Bankruptcy Rule 2016-1 on notice to the debtor and Chapter 13 trustee. The applicant must demonstrate that the additional services were unforeseeable at the time of the filing of the disclosure required under subdivision (a).

(e) Chapter 13 Debtor's Attorney Fee Application Cover Sheet. An attorney seeking compensation and reimbursement of necessary expenses in any amount must file with the application Local Form *Chapter 13 Debtor's Attorney Fee Application Cover Sheet* and comply with Local Bankruptcy Rule 2016-1. A request for compensation totaling under $1,000 does not require completion of Sections I – III of the *Chapter 13 Debtor's Attorney Fee Application Cover Sheet*.

(f) Service. The attorney must serve the application and cover sheet on the debtor and Chapter 13 trustee.

2026 Comment

This Rule is amended at subsection (a) to increase the standard fee for a Chapter 13 debtor's attorney from $4,750 to $6,000 for cases filed on or after the effective date of this Rule, August 1, 2026. Subsequent increases to the standard fee are subject to adjustment of dollar amounts governed by 11 USC Section 104.

2025 Comment

The amendments to this Rule are stylistic.

2019 Comment

This Rule is amended to require the use of a fee application cover sheet any time the debtor's attorney files a fee application, not just for fee applications of $10,000 or more.

The fee application cover sheet has been modified to reflect any differential in distribution caused by the fee.

2018 Comment

This Rule is amended to increase the standard fee. For cases filed or converted to Chapter 13 on or after the effective date of this Rule, the court will no longer accept Local Forms, *Certification of Debtor's Counsel Supporting Supplemental Chapter 13 Fee* and *Order Granting Supplemental Chapter 13 Fees*. In those cases, all fees requested under this Rule must be filed in compliance with Local Bankruptcy Rule 2016-1.

Examples of administrative services under subdivision (b) include preparation and filing of a Certification in Support of Discharge, preparation and filing of a Certification About a Financial Management Course, and providing documentation requested by the Chapter 13 trustee.

Subdivision (c) does not preclude an attorney who elects hourly billing from submitting fee applications after the initial fee request.

2015 Comment [Abrogated]

This Rule was formerly Local Bankruptcy Rule 2016-1(j).

Taking the steps necessary to discharge liens modified under the plan under subdivision (a)(1)(G) includes the filing of Local Forms *Application to Cancel and Discharge Mortgage/Lien* and C*hapter 13 Order Authorizing Cancellation, Voiding and/or Discharge of Record of Mortgage/Lien*.

The calculation of the fee amounts in this Rule is exclusive of the filing fee and expenses.

D.N.J. LBR 3001-1. Request for Payment of Administrative Expense

(a) Required form. An entity seeking payment of an administrative expense must file Local Form *Request for Payment of Administrative Expense* on the Claims Register.

(b) Hearing. The court does not schedule a hearing on a request for payment of an administrative expense unless an objection is filed. To the extent that payment has not been made and immediate payment is sought, the entity must file a motion.

(c) Objection. An objection to a Request for Payment of Administrative Expense must be brought by motion or adversary proceeding.

2025 Comment

This Rule is amended to clarify that Local Form *Request for Payment of Administrative Expense* should be filed on the Claims Register.

This Rule is also amended to clarify that an objection to a Request for Payment of Administrative Expense requires a motion or complaint; a letter to the court or other document, such as an "objection," is insufficient.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 3003-2.

The filing of Local Form *Request for Payment of Administrative Expense*, without a motion under subdivision (b), will result in payment in the ordinary course.

Local Bankruptcy Rule 2016-1 addresses an application for compensation and reimbursement of expenses filed by a professional person.

D.N.J. LBR 3002.1-1. Notice Relating to Claims Secured by Security Interest in the Debtor's Principal Residence

(a) Termination of notice requirements. The entry of an order granting a secured creditor relief from the automatic stay terminates the notice requirements of Bankruptcy Rule 3002.1(b) and (c).

(b) Applicability of notice requirements. If a post-petition event renders a secured creditor subject to the automatic stay and the requirements of Bankruptcy Rule 3002.1, the secured creditor must:

(1) within 30 days of the date on which the automatic stay becomes applicable, file and serve on the debtor a notice of payment changes under Bankruptcy Rule 3002.1(b) if the amount of the monthly payment changed during the period in which the automatic stay was not in effect; and

(2) within 180 days of the date on which the automatic stay becomes applicable, file and serve on the debtor a notice under Bankruptcy Rule 3002.1(c) for any fees, expenses, and charges incurred during the period in which the automatic stay was not in effect.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 3002.1-2.

A post-petition event under subdivision (b) includes the entry of an order reopening a case, reinstating a case, or converting a case to Chapter 13.

D.N.J. LBR 3003-1. Filing Proof of Claim or Equity Security Interest in a Chapter 11 Case

(a) Time for filing.

(1) Creditors and Equity Security Holders. A creditor (other than a governmental unit) or equity security holder subject to Bankruptcy Rule 3003(c)(2) must file a proof of claim or interest not later than 70 days after the date of the order for relief.

(2) Governmental Units. A governmental unit subject to Bankruptcy Rule 3003(c)(2) must file a proof of claim not later than 180 days after the date of the order for relief.

(b) Rejection damages. A proof of claim arising from the rejection of an executory contract or unexpired lease must be filed by the later of:

(1) 30 days after rejection; or

(2) 70 days after the date of the order for relief.

2019 Comment

Subdivisions (a)(1) and (b)(2) are modified to fix under Federal Rule 3003(c) a bar date for filing proofs of claim in a Chapter 11 case. The timeframes are consistent with the amendments to Federal Rule 3002(c).

Subdivision (a)(2) is new. It fixes the deadline for the filing of a proof of claim by a governmental unit in a Chapter 11 case, as provided by Bankruptcy Rule 3003(c)(3).

2015 Comment

An adjournment of the meeting of creditors does not affect the deadlines in this Rule.

D.N.J. LBR 3007-1. Objecting to a Claim in a Chapter 11, 12, or 13 Case

(a) Procedure. An objection to the allowance of a claim must be brought by motion or adversary proceeding.

(b) Time for filing. A motion or adversary proceeding objecting to a claim must be filed by the later of:

(1) 60 days after the entry of the order confirming plan; or

(2) 60 days after the claim is filed or amended.

(c) Extension. A request for an extension of the time to object to the allowance of a claim must be brought by motion filed before the expiration of the time to object.

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2015 Comment

An objection to the allowance of a claim now requires a motion or complaint; a letter to the court or other document, such as an "objection," is insufficient.

D.N.J. LBR 3007-2. Omnibus Objection to Claims

An omnibus objection to claims may be filed to reduce the amount of a claim or to modify a claim's priority status. Local Form *Notice of Objection to Your Claim* must be filed and served on each claimant. The requirement to file and serve on each claimant Local Form *Notice of Objection to Your Claim* does not apply in a Chapter 11 Complex Case.

2025 Comment

This Rule is amended to specify that it does not apply in a Chapter 11 Complex Case.

2017 Comment

This Rule is new. Promulgated under Bankruptcy Rule 3007(c), the rule expands the grounds upon which an omnibus objection may be based beyond those set forth under Bankruptcy Rule 3007(d). It introduces Local Form *Notice of Objection to Your Claim,* which must be filed and served on individual claimants in support of the motion or adversary proceeding objecting to a claim required under Local Bankruptcy Rule 3007-1(a).

D.N.J. LBR 3011-1. Unclaimed Funds in Cases Under Chapter 7, Subchapter V of Chapter 11, Chapter 12, or Chapter 13

(a) Deposit. A trustee must file Local Form *Notice Depositing Unclaimed Funds Pursuant to D.N.J. LBR 3011-1* to deposit unclaimed funds into the court's registry without court order.

(b) Payment of unclaimed funds.

(1) All claimants must use Local Form *Application for Payment of Unclaimed Funds*.

(2) A claimant must be:

(A) the Owner of Record (original payee) or its legal successor; or

(B) the Owner of Record's assignee or its legal successor.

(3) The application must include the supporting documentation identified in the Instructions for Filing an Application for Payment of Unclaimed Funds. The court may, in its discretion, request supplemental documentation or additional information from a claimant and conduct a hearing to verify entitlement to the funds.

(4) The application must be served on the United States Attorney for the District of New Jersey and Local Form *Certification of Service* must be filed.

(5) The application must include Local Form *Order Granting Application for Payment of Unclaimed Funds*.

(6) The application must include *Request for Payee Information and TIN Certification* (AO 213P) or other acceptable documents as indicated in the *Instructions for Filing Application for Payment of Unclaimed Funds*.

(c) Objection. An objection to the application must be filed and served within 21 days after filing the application.

(d) Hearing. The court may, in its discretion, schedule a hearing and require appearances. Parties will be notified via a notice of hearing, which will indicate whether appearances are required virtually (via Zoom), telephonically, or in person.

2026 Comment

This Rule is amended to add subdivision (d) to clarify that the court may schedule a hearing within its discretion whether or not an objection has been filed.

2025 Comment

This Rule is amended to require the submission of *Request for Payee Information and TIN Certification* (AO 213P).

2024 Comment

This Rule is amended to assist the court in preventing fraud. The Rule now expressly permits the court to request additional information from a claimant and to require appearances at a hearing on any application.

2020 Comment

The title of this Rule is amended to include Subchapter V of Chapter 11 due to the enactment of the Small Business Reorganization Act of 2019.

This Rule is amended to conform with the adoption of Director's Form 1340 (to be effective December 1, 2019) by the Judicial Conference of the United States.

If an objection is timely filed in accordance with subdivision (c) the court will schedule a hearing.

In a closed case, no motion to reopen is required and no reopening fee will be charged.

2015 Comment

Section 2041 of title 28 governs deposit of funds in pending or adjudicated cases, and section 2042 governs withdrawal of funds deposited in court.

This Rule applies only to unclaimed distributions deposited into court by a trustee under § 347(a) of the Code. All other funds deposited into court are governed by Local Bankruptcy Rule 7067-1. In a closed case, the chief bankruptcy judge will hear the motion for withdrawal.

D.N.J. LBR 3015-1. Filing and Service of a Chapter 13 Plan and Motions

(a) Required form. A Chapter 13 debtor must file Local Form *Chapter 13 Plan and Motions*.

(b) Motions permitted in plan. Only the following motions may be included in a Chapter 13 plan: (i) a motion to avoid a judicial lien under § 522(f) of the Code; and (ii) a motion to avoid a lien and reclassify the related claim.

(c) Service. If a Chapter 13 plan includes a motion, the debtor must serve, in accordance with Bankruptcy Rule 9014, each affected lienholder with Local Forms *Chapter 13 Plan and Motions* and *Notice of Chapter 13 Plan Transmittal*. The debtor must serve each affected lienholder not less than 28 days before the confirmation hearing, and must immediately file Local Form *Certification of Service*.

2025 Comment

The amendments to this Rule are stylistic.

2015 Comment

The 21 day time period in former subdivision (b) was changed to 28 days as required under Bankruptcy Rule 2002(b). The phrase "potentially affected creditor" was changed to "each affected lienholder" to clarify to whom notice of the plan and *Notice of Chapter 13 Plan Transmittal* must be provided.

This Rule applies to both the original Chapter 13 plan and any modified plan under Local Bankruptcy Rule 3015-2 that includes a motion.

D.N.J. LBR 3015-2. Modified Chapter 13 Plan and Motions

(a) Hearing. The filing of a modified Chapter 13 plan does not change the date of any previously scheduled confirmation hearing unless an adjournment is granted.

(b) Service. The debtor must serve by first class mail each affected party with the entire modified plan and immediately file Local Form *Certification of Service*.

(c) Motions. The filing and service of Local Forms *Chapter 13 Plan and Motions* and *Notice of Chapter 13 Plan Transmittal* in accordance with this Rule and Bankruptcy Rule 3015(h) obviates the need to file a separate Notice of Motion of the filing of a modified Chapter 13 plan.

2025 Comment

The amendments to this Rule are stylistic.

2020 Comment

Subdivision (b) of this Rule is amended to replace the term "affected lienholder" with "affected party."

Subdivision (c) of this Rule is new and includes a reference to the relevant Local Forms impacting this Rule.

2015 Comment

If a modified Chapter 13 plan includes a motion, the debtor must serve, in accordance with Local Rule 3015-1, each affected lienholder with Local Forms *Chapter 13 Plan and Motions* and *Notice of Chapter 13 Plan Transmittal*.

Notice of the hearing on the modified plan will be provided in accordance with Bankruptcy Rule 2002(b).

D.N.J. LBR 3015-3. Objecting to Confirmation of a Chapter 13 Plan

An objection to Chapter 13 confirmation must be filed and served not later than 7 days before the hearing date set in the *Notice of Hearing on Confirmation of Plan* or *Notice of Modification of Chapter 13 Plan*.

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2015 Comment

This Rule was formerly part of Local Bankruptcy Rule 3015-6. The Rule eliminates the provision in the former Rule that allowed the filing of a proof of claim to serve as an objection to confirmation.

Local Bankruptcy Rule 3015-4 provides that an objecting party must appear at the confirmation hearing.

D.N.J. LBR 3015-4. Appearance at a Chapter 13 Confirmation Hearing

(a) Debtor. The debtor's attorney or a self-represented debtor must appear at any Chapter 13 confirmation hearing unless, before the hearing, the Chapter 13 trustee has recommended confirmation of the plan.

(b) Objecting party. An objecting party must appear at the confirmation hearing.

2025 Comment

The amendments to this Rule are stylistic.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 3015-3. Subdivision (a) codifies the current practice of excusing an appearance when, before the hearing, the Chapter 13 trustee recommends confirmation. A Chapter 13 trustee will not recommend confirmation if a filed objection remains unresolved.

D.N.J. LBR 3016-1. Chapter 11 Plan and Disclosure Statement and Related Forms

(a) Table of Contents. Every Chapter 11 Plan or Disclosure Statement must contain a Table of Contents.

(b) Modification. If a Chapter 11 plan proponent files a modified plan or disclosure statement, the entire modified document must be filed. The title must use a numerical designation such as "First Modified Plan" or "Second Modified Plan."

(c) Required Forms in Subchapter V Cases. A Subchapter V debtor must file Local Forms *Subchapter V Status Report* and *Small Business Debtor's Plan of Reorganization [or Liquidation] for Subchapter V Small Business Cases.*

2025 Comment

This Rule is also applicable in a Chapter 11 Complex Case. Additional amendments to this Rule are stylistic.

2020 Comment

This Rule is amended to add subdivision (c), which requires the use of mandatory Local Forms in Subchapter V cases.

In addition to the mandatory Local Forms referenced in subdivision (c), the following Local Forms are available in non-Subchapter V cases: *Chapter11 Plan* and *Chapter 11 Small Business Debtor's Combined Plan of Reorganization [or Liquidation] and Disclosure Statement.*

When using a *Chapter 11 Small Business Debtor's Combined Plan of Reorganization [or Liquidation] and Disclosure Statement,* a debtor may object to the amount or validity of any Claim within 60 days (pursuant to D.N.J. LBR 3007-1) of the Confirmation Date by filing an objection with the Bankruptcy Court and serving a copy of the objection on the holder of the Claim. The Claim objected to must be specifically identified in the Combined Plan and will be treated as a Disputed Claim under the Combined Plan.

For an individual Chapter 11 debtor, a Combined Plan and Disclosure Statement may only be used upon express authorization of the judge and will otherwise be rejected by the Clerk's Office.

2016 Comment

This Rule is amended to add subdivision (a).

2015 Comment

The following Local Forms are available: *Chapter11 Plan*; *Chapter 11 Small Business Debtor's Combined Plan of Reorganization [or Liquidation] and Disclosure Statement*; and *Individual Debtor's Chapter 11 Combined Plan of Reorganization [or Liquidation] and Disclosure Statement.*

D.N.J. LBR 3018-1. Accepting or Rejecting a Plan in a Chapter 11 Case

(a) Return of ballots. Ballots must be sent to the attorney for the Chapter 11 plan proponent or to an entity authorized by the court not later than 7 days before the confirmation hearing.

(b) Certification of balloting. The ballot recipient must file Local Form *Certification of Balloting* not later than 3 days before the confirmation hearing. A copy of the *Certification of Balloting* must be served on the debtor, trustee, United States trustee, and any official committee.

(c) Retention of ballots. The ballot recipient must retain the ballots for two years from the closing of the case.

2025 Comment

This Rule is also applicable in a Chapter 11 Complex Case. Additional amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 3018-2. The Rule now sets a deadline for balloting and introduces a new Local Form *Certification of Balloting*.

D.N.J. LBR 3020-1. Chapter 11 Plan Effective Date

The effective date of a Chapter 11 plan is 30 days after entry of the order confirming the plan unless the plan or confirmation order provides otherwise.

2025 Comment

This Rule is also applicable in a Chapter 11 Complex Case. Additional amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 3016-1(b). The default effective date was changed from "when the order of confirmation becomes final" to "30 days after entry of the order confirming the plan" to provide a definitive effective date.

D.N.J. LBR 3021-1. Chapter 11 Plan Distributions

(a) Disbursing agent. A Chapter 11 plan providing for distribution of property must designate a disbursing agent and state the terms of any compensation to the disbursing agent.

(b) Deposit of funds. The disbursing agent must deposit funds in a segregated account. Distributions from the account must indicate the source of the funds.

(c) Funds held for more than 30 days. If the Chapter 11 plan requires the disbursing agent to maintain funds for more than 30 days, the funds must be held in an interest-bearing account or certificate for the benefit of creditors and interest holders.

(d) Report of Distributions. Within 14 days after each distribution, and until the case is closed, the disbursing agent must file and serve on the debtor, the Chapter 11 plan proponent, the United States trustee, and any official committee Local Form *Report of Distributions Under Confirmed Chapter 11 Plan*.

(e) Unclaimed distributions.

(1) Unless the plan or an order of the court provides otherwise, unclaimed security, money, or other property must be returned to the debtor or the entity acquiring the assets of the debtor under the Chapter 11 plan not later than 180 days from the date of distribution.

(2) If a confirmed Chapter 11 plan does not provide for the disposition of unclaimed property that cannot be distributed pursuant to § 347(b) of the Code, or such unclaimed property has not otherwise been disposed of pursuant to an order of the court, and all claims have been paid in full, then the court may, after notice and a hearing, approve a motion filed by the plan administrator, or similar appointee, within the time prescribed under subdivision (e)(1), to donate any unclaimed property to an appropriate not-for-profit, non-religious organization. The motion must include a certification describing the organization and confirming its not-for-profit, non-religious status.

(f) Individual debtor. Except in the case of a plan confirmed under § 1191(a) or (b) of the Code, a Chapter 11 debtor who is an individual must file Local Form *Chapter 11 Individual Debtor's Certification of Completion of Plan Payments and Notice to Creditors* after the final distribution.

2025 Comment

This Rule is also applicable in a Chapter 11 Complex Case. Subdivision (e)(2) is new. It allows for unclaimed funds to be donated to appropriate not-for-profit, non-religious organizations if certain conditions are met and subject to approval by the court.

2021 Comment

Subdivision (f) is amended due to the enactment of the Small Business Reorganization Act of 2019.

2015 Comment

Subdivision (a) is amended to require that a Chapter 11 plan providing for distribution of property must designate a disbursing agent.

Subdivision (b) is amended to eliminate the requirement in the former rule that a distribution be only by check. The Rule now permits distribution by other means, such as electronic transfer. If a check is used, it must identify the case name and the disbursing agent's name.

Subdivision (e) supplements § 347(b) of the Code, and in the absence of a time period set forth in a plan, provides a deadline for return of unclaimed security, money, or other property.

Subdivision (f) supplements § 1141(d)(5) of the Code, which provides that in a case in which the debtor is an individual the court does not grant a discharge until the debtor has completed all payments under the plan.

D.N.J. LBR 3022-1. Closing a Chapter 11 Case

(a) Closing case. Except in the case of a plan confirmed under § 1191(b) of the Code, the court will close a Chapter 11 case 180 days after entry of the order confirming the plan.

(b) Cases under § 1191(b) of the Code. In a case confirmed under § 1191(b) of the Code, the court will close the case if the trustee has filed the Chapter 11 Subchapter V Trustee's Final Report and Account, and if within 30 days no objection has been filed by the United States trustee or a party in interest.

(c) Extension. On motion of a party in interest filed before the case is closed, the court may extend the time for closing the case.

2025 Comment

This Rule is also applicable in a Chapter 11 Complex Case. Additional amendments to this Rule are stylistic.

2023 Comment

If an objection is filed by a party in response to a *Notice of Intention to Close the Case Pursuant to D.N.J. LBR 3022-1(a)* opposing closure and requesting that the case remain open, such party is not required to file a separate motion for an extension pursuant to D.N.J. LBR 3022-1(c).

2021 Comment

Subdivision (a) is amended and Subdivision (b) is new due to the enactment of the Small Business Reorganization Act of 2019.

2015 Comment

The changes to this Rule are stylistic.

D.N.J. LBR 4001-1. Relief From the Automatic Stay

(a) General requirements.

(1) The movant must file a statement of amount due that includes, as applicable:

(A) unpaid principal;

(B) accrued interest from a specific date to a specific date;

(C) unearned interest;

(D) per diem interest;

(E) late fees from a specific date to a specific date;

(F) attorney's fees;

(G) advances for taxes and insurance;

(H) total post-petition arrearage;

(I) any other fees and charges; and

(J) date of last payment.

The movant must file Local Form *Certification Regarding Calculation of Amount Due* as the statement if the amount claimed due is secured by a mortgage on real property owned by the debtor.

(2) The movant must file a certification that includes the following exhibits, as applicable:

(A) note;

(B) bond;

(C) mortgage bearing the stamped date of recordation;

(D) security agreement;

(E) financing statement bearing the stamped date of filing;

(F) assignment; and

(G) appraisal.

(3) When the movant alleges that the debtor has failed to make a post-petition mortgage or vehicle payment, the party must file either Local Form *Certification of Creditor Regarding Post Petition Payment History (Note and Mortgage)* or Local Form *Certification of Creditor Regarding Post Petition Payment History (Vehicle Loan/Lease)*.

(b) Opposition in a chapter 13 case.

(1) To oppose a motion for relief from the automatic stay or a motion to dismiss filed by a Chapter 13 trustee, a Chapter 13 debtor must file and serve on the movant and the Chapter 13 trustee Local Form *Chapter 13 Debtor's Certification in Opposition* not later than 7 days before the hearing date.

(2) To oppose a *Creditor's Certification of Default* or *Chapter 13 Trustee's Certification of Default*, a Chapter 13 debtor must file and serve on the movant and the Chapter 13 trustee Local Form *Chapter 13 Debtor's Certification in Opposition* not later than 14 days after the filing of the certification of default.

(c) Effect of failure to oppose an adjournment request. A movant's failure to oppose a request for an adjournment of a hearing on a motion for relief from the automatic stay constitutes consent to the adjournment under § 362(e) of the Code.

2025 Comment

Nothing in this Rule is intended to override compliance with D.N.J. LBRs 2002-1 and 9013-1. Additional amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2024 Comment

Local Bankruptcy Rule 9021-1 is superseded by new Local Bankruptcy Rule 9019-4.

2015 Comment

This Rule eliminates the provision stating that court appearances are not required for unopposed motions relating to the automatic stay because Local Bankruptcy Rule 9013-3(d) provides that the court decides all unopposed matters on the papers.

Local Bankruptcy Rule 9021-1(c) addresses consent orders in lieu of a motion for stay relief in Chapter 11 cases where no committee has been appointed.

D.N.J. LBR 4001-2. Monthly Statements, Payment Coupons, and Related Notices

A secured creditor or lessor does not violate the automatic stay imposed by § 362 of the Code or the discharge injunction imposed by § 524 of the Code when it sends any of the following documents to the debtor:

(1) a regular monthly statement or payment coupon;

(2) a reminder statement which is informational only and does not demand payment;

(3) a notice of the status of an escrow account, including a notice regarding calculation of a new monthly payment based on a change in the property tax or insurance premium; or

(4) a notice of an adjustment to a variable rate monthly mortgage payment resulting from a change in the interest rate.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 4001-3(a). It is amended to include lessors.

D.N.J. LBR 4001-3. Using Cash Collateral; Obtaining Credit

(a) Motion for use of cash collateral. A motion for use of cash collateral must:

(1) include a detailed 4 week cash flow budget for a motion for interim use of cash collateral and a detailed 12 week budget for a motion for final use of cash collateral; and

(2) summarize the following provisions, if applicable, and identify the location of each in any relevant document and in the proposed order:

(A) the amount of cash collateral sought to be used;

(B) the adequate protection to be provided for the use of cash collateral; and

(C) any of the provisions in subdivision (c).

(b) Motion to obtain credit. A motion for authority to obtain credit must:

(1) include the following items:

(A) a description of the efforts to obtain credit;

(B) the facts demonstrating that the movant has obtained the best available terms for the proposed credit;

(C) a detailed budget supporting the proposed credit; and

(D) the facts demonstrating that the extension of credit is made in good faith;

(2) summarize the following provisions, if applicable, and identify the location of each in any relevant document and in the proposed order:

(A) the amount of credit sought, including any committed amount, and any borrowing base formula and the estimated availability under the formula;

(B) material conditions to closing;

(C) pricing and economic terms, including fees and the treatment of costs and expenses of the lender, any agent for the lender, and their respective professionals;

(D) the application of credit to pay pre-petition debt or that otherwise has the effect of converting pre-petition debt to post-petition debt*, i.e.*, a rollup;

(E) the repayment of post-petition credit in connection with a plan;

(F) the waiver of the right to incur liens that prime or that are *pari passu* with liens granted under § 364 of the Code; and

(G) any of the provisions in subdivision (c).

(c) Additional provisions. A motion for use of cash collateral or to obtain credit must summarize the following provisions, if applicable, and identify the location of each in any relevant document and in the proposed order:

(1) the effect of the relief sought on existing liens;

(2) elevation of pre-petition debt to administrative expense or super-priority status or the grant of a lien on post-petition assets to secure pre-petition debt;

(3) termination or default provision, including any cross-default provision or provision that the use of cash collateral or credit will cease on:

(A) the filing of a challenge to the lender's pre-petition lien or claim;

(B) the entry of an order granting relief from the automatic stay;

(C) the filing of a motion for the appointment of a trustee or examiner;

(D) the entry of an order granting a change of venue;

(E) a management change; or

(F) the departure of any identified employee;

(4) establishment of a deadline or a requirement for:

(A) the sale of property of the estate or of a non-debtor affiliate; or

(B) the filing of a plan;

(5) limitation of the court's authority, or enhancement or restriction of the rights, powers, or duties of a trustee, examiner, debtor, or committee appointed under the Bankruptcy Code;

(6) limitation or waiver of rights under § 506(c) of the Code;

(7) agreement binding the debtor or other parties in interest with respect to the validity, perfection, or amount of the lender's pre-petition claim, or the waiver of claims against the lender;

(8) grant of an interest on causes of action arising under §§ 544, 547, 548, or 549 of the Code;

(9) carve-outs from liens or super-priorities;

(10) change of control;

(11) cross-collateralization;

(12) funding of a non-debtor affiliate with cash collateral or credit proceeds and the approximate amount of such funding;

(13) in related debtor cases, a term that affects joint liability of debtors or the allocation of liability among estates; and

(14) for cases under Subchapter V of Chapter 11 of the Bankruptcy Code, payment of the Subchapter V trustee's fees.

(d) Modification. A proposed order allowing use of cash collateral or authority to obtain credit may permit the parties to enter into waivers or consents with respect to the use of cash collateral or the credit agreement, or amendments thereto, without the need for further court approval provided that:

(1) the modification is not material;

(2) notice of the proposed modification is filed with the court; and

(3) notice of the proposed modification is provided in advance to counsel for any official committee, any party requesting notice of all proceedings, and the United States trustee.

2025 Comment

This Rule is amended to add subdivision (c)(14), which addresses payment of trustee fees in a Subchapter V case. Additional amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2015 Comment

This Rule was formerly part of the Appendix to Local Rule 4001-4, which is deleted.

D.N.J. LBR 4001-4. Status of Automatic Stay

(a) Relief by motion. A party seeking an order confirming the status of the automatic stay under § 362(c)(4), § 362(b)(22) or § 362(b)(23) of the Code must file Local Form *Motion for Order Confirming Automatic Stay is Not in Effect*.

(b) General requirements. A party seeking an order under subdivision (a) must file and serve Local Form *Motion for Order Confirming Automatic Stay is Not in Effect* and a proposed order on the debtor, the debtor's attorney, secured creditors, official committees, trustees, and parties requesting notice of all proceedings. The party must file Local Form *Certification of Service* evidencing compliance with this subdivision.

(c) Objection. An objection to the motion must be filed and served within 7 days after the filing of the motion. The court may conduct a hearing on the objection in its discretion, which will be scheduled not later than 10 days after the objection is filed.

2018 Comment

This Rule is new and provides an expedited procedure for obtaining an order confirming the status of the automatic stay in situations where the stay is inapplicable or has expired pursuant to statute.

To obtain an order in cases where §362(c)(3) of the Code applies, a motion complying with Local Bankruptcy Rules 9013-1 through 9013-3 is required.

D.N.J. LBR 4002-1. Certification in Support of Discharge

Upon completion of payments under a Chapter 12 Plan or upon receipt of the Trustee's Plan Complete Letter in a Chapter 13 case, the debtor must within 30 days file Local Form *Certification in Support of Discharge*.

2018 Comment

This Rule is new. It ensures compliance with § 1228(a) or §1328(a) of the Code concerning payment of domestic support obligations and eliminates the practice of filing the *Certification in Support of Discharge* before completion of plan payments. Each debtor in a joint case must file a separate *Certification in Support of Discharge*. A discharge will not be entered for a debtor who fails to file a completed *Certification in Support of Discharge*.

D.N.J. LBR 5005-1. Filing and Transmittal of Papers

(a) Mandatory electronic filing. An attorney who files 10 or more documents in a 12 month period must file electronically.

(b) Case Management/Electronic Case Filing System.

(1) By accepting a login and password from the court, an individual becomes a registered user in CM/ECF.

(2) A registered user must file all related documents under a single docket entry.

(A) If a certification attaches documents, each document must be in a separate exhibit.

(3) Signatures.

(A) The filing of a document in CM/ECF constitutes the registered user's signature for purposes of Bankruptcy Rule 9011.

(B) An electronic signature must be preceded by "/s/", *e.g.*, "/s/Jane Doe."

(C) A registered user must retain a document bearing the original signature of a third party for 7 years after the closing of the case or proceeding. On request of the court or a party, a registered user must produce the document bearing the original signature.

2025 Comment

In a Chapter 11 Complex Case, parties should be guided by Section IV(b) of the *Chapter 11 Complex Case Procedures*. Additional amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2020 Comment

Subdivision (b) now specifies that each document must be its own exhibit. For example, on a motion for relief from stay, the mortgage, note, and assignment would be three separate exhibits. To facilitate this change, the court is abrogating the 20-page limit for exhibits contained in paragraph II.G. of the court's *Administrative Procedures for Filing, Signing, and Verifying of Documents by Electronic Means* which was enacted on April 30, 2002 by the court's *Order Establishing Procedures for Submission of Documents Containing Exhibits.*

Subdivisions (c) and (d) were eliminated because service by electronic means is now addressed by Bankruptcy Rule 9036 (effective December 1, 2019). The use of "participant" in subdivision (b) was changed to "registered user" to be consistent with Bankruptcy Rule 9036.

The changes to Bankruptcy Rule 9036 do not eliminate the requirement that a motion or cross-motion must be served by non-electronic means because motions must be served in accordance with Bankruptcy Rule 7004.

2015 Comment

This Rule is amended to delete provisions that have become outdated since the adoption of electronic filing in 2001. Also, certain technical requirements have been moved to the *CM/ECF User's Guide* available on the court's website.

Subdivision (b)(2) provides that related documents must be filed under a single docket entry. For example, a Notice of Motion should be filed as the main document, and any certification in support, memorandum of law, certification of service, and proposed order should be filed as attachments.

Subdivision (c) identifies the types of documents and parties that must be served in the manner required for service of a summons and complaint under Bankruptcy Rule 7004. Subdivision (c)(1)(B) clarifies that electronic service of a motion or other document initiating a contested matter under 9014 through the Notice of Electronic Filing is not proper service. All motions are deemed "contested matters" under Bankruptcy Rule 9014, regardless of whether opposition is filed; therefore, the initiating pleading or document, *e.g.*, a Notice of Motion, must be served in accordance with Bankruptcy Rule 9014(b).

Subdivision (d)(1) provides that a document filed after the initiating pleading, *e.g.*, an opposition or reply, may be electronically served on a participant under Federal Rule 5(b)(2)(E).

Subdivision (d)(2) makes clear that in accordance with Bankruptcy Rule 7004(g), if the debtor is represented by an attorney, whenever service is made upon the debtor under Bankruptcy Rule 7004, service must also be made upon the debtor's attorney by any means authorized under Federal Rule 5(b)(2)(E).

Electronic filing of a document under seal is now addressed in Local Bankruptcy Rule 9018-1.

Former Local Bankruptcy Rule 7005-1, which is deleted, is incorporated into this Rule.

D.N.J. LBR 5007-1. Requesting a Recording

Prior to a hearing, a party may request that an audio file of a court proceeding be placed on the docket.

2025 Comment

This Rule is amended to emphasize that an audio request must be made prior to a court proceeding.

2015 Comment

This Rule is new. The request must be made to the judge's Electronic Court Recording Operator before the matter is heard. Due to current technical constraints, the court cannot provide an audio file when the request is made after the conclusion of the matter.

D.N.J. LBR 5010-1. Service of Motion to Reopen Case

A motion to reopen a case pursuant to § 350(b) of the Code must be served on the debtor, the United States trustee, and any party against whom specific relief is sought under Bankruptcy Rule 9014(b).

2019 Comment

This Rule is new. It is intended to set forth the service requirements regarding motions to reopen, which are not provided in the Code or Bankruptcy Rules.

D.N.J. LBR 5011-1. Withdrawal of Reference

(a) Filing of motion. A party seeking withdrawal of the reference of a case or proceeding must file a motion with the clerk of the bankruptcy court.

(b) Service of motion. A motion to withdraw the reference of a case must be served on all creditors and parties in interest. A motion to withdraw the reference of a proceeding must be served on all parties.

(c) Transmittal to the district court. The clerk of the bankruptcy court will transmit the motion to the district court. All papers filed after the initial motion must be filed with the clerk of the district court.

2015 Comment

This Rule is amended to add service requirements.

D.N.J. LBR 5071-1. Adjournment

(a) Procedure.

(1) A party seeking an adjournment in advance of a scheduled hearing in a Chapter 7 or 11 case or an adversary proceeding must submit Local Form *Adjournment Request* to the chambers's email address.

(2) A party seeking an adjournment in advance of a scheduled hearing in a Chapter 13 case must submit Local Form *Adjournment Request for Chapter 13* to the Chapter 13 trustee.

(b) Timing. An adjournment request must be made not later than 3 days before the hearing date.

(c) Peremptory date. The court may, in its discretion, set a peremptory hearing date.

2025 Comment

This Rule is amended to clarify that Local Form *Adjournment Request* applies to adversary proceedings, and that the court may set a peremptory hearing date at any time in its discretion.

2015 Comment

This Rule now requires the use of Local Form *Adjournment Request* or *Adjournment Request for Chapter 13* for all adjournment requests made before the scheduled hearing date. This Rule does not prevent a party from appearing at a hearing to request an adjournment.

If the final day of the 3 day period under subdivision (b) falls on a weekend or federal holiday, the request should be made on the preceding day on which the court is open.

The court is instituting the peremptory hearing date procedure in subdivision (c) to strongly encourage parties to request an adjournment at least 3 days before the scheduled hearing.

This procedure does not apply to adjournments of the meeting of creditors under § 341(a) of the Code.

D.N.J. LBR 6004-1. Motion to Sell Property

(a) General requirements. A motion to sell property under § 363 of the Code must include:

(1) a copy of the proposed sale agreement, or a form of agreement substantially similar to the form that will be executed in connection with the proposed sale;

(2) a copy of the proposed order approving the sale;

(3) the material terms of the proposed sale, including:

(A) a description of the property to be sold;

(B) the date, time, and place of sale;

(C) the purchase price;

(D) a condition of the sale;

(E) a deadline for the approval or closing of the sale;

(F) a deposit requirement and the conditions under which the deposit may be forfeited;

(G) a request for a tax determination under § 1146(b) of the Code;

(H) an identification of the entity that will retain or have access to the debtor's books and records, if the proposed sale is of substantially all of the debtor's assets;

(I) an identification of any executory contract or unexpired lease to be assumed and assigned under § 365 of the Code;

(J) a provision regarding credit bidding under § 363(k) of the Code; and

(K) a broker or sales agent's anticipated fee or commission; and

(4) a request for the appointment of a consumer privacy ombudsman under § 332 of the Code, if applicable.

(b) Special provisions. The motion must identify the location of any of the following provisions in the sale agreement and proposed order:

(1) identification of any insider to which property is being sold; description of the insider's relationship to the debtor; and description of any measures taken to ensure the fairness of the sale process and the proposed transaction;

(2) description of the material terms of any agreement with management or key employees regarding compensation or future employment; statement as to whether the terms comply with § 503(c) of the Code; and a description of the measures taken to ensure the fairness of the sale and the agreement;

(3) a waiver, release, or satisfaction of any claim;

(4) an agreement to limit marketing of the property or to not solicit competing offers;

(5) an interim agreement with the proposed purchaser;

(6) a release of sale proceeds on or after the closing, or allocation of sale proceeds between or among sellers, without further court order;

(7) a sale or limitation of the right to pursue avoidance claims under Chapter 5 of the Code;

(8) a limitation of the proposed purchaser's successor liability;

(9) a provision to sell property free and clear of a leasehold interest, license, or other right; and

(10) a provision to waive the stay of an order imposed by Bankruptcy Rule 6004(h) or 6006(d).

(c) Notice of sale. Except where the motion is heard on shortened time, a motion to sell property must be accompanied by Local Form *Notice of Proposed Private Sale* or *Notice of Proposed Public Sale*.

2016 Comment

This Rule is amended to clarify that Local Form *Notice of Proposed Private* or *Public Sale* need not be filed with a motion to sell property when the motion will be heard on shortened time. The motion should be served as directed by the Order Shortening Time.

2015 Comment

This Rule now incorporates a portion of the Guidelines for Sale of Estate Property in Chapter 11 cases, which were formerly in the Appendix to the Rule.

Local Bankruptcy Rule 6004-2 addresses bidding and auction procedures.

Subdivision (c) provides the procedure for a party seeking approval of a proposed sale to supply information to the court to satisfy the clerk's responsibility to send notice under Bankruptcy Rule 2002(a)(2).

D.N.J. LBR 6004-2. Bidding and Auction Procedures for Sale of Property

(a) Motion. An entity requesting approval of bidding and auction procedures for a sale of property under § 363 of the Code must file a motion. The entity may include the request in a motion to sell property under Local Bankruptcy Rule 6004-1 or file a separate motion.

(b) Material provisions. The motion must identify the following material provisions:

(1) a provision governing a bidder's qualifications, including an obligation to:

(A) deliver financial information by a stated deadline to the movant and other key parties;

(B) demonstrate a bidder's financial ability to consummate a sale;

(C) maintain the confidentiality of information obtained from the debtor or other parties or execute a non-disclosure agreement; or

(D) make a non-binding expression of interest or execute a binding agreement.

(2) a provision governing a bid's qualifications, including:

(A) a requirement regarding a deposit, including the amount and the conditions under which the deposit may be refundable;

(B) a deadline for submitting a bid or for modifying a bid not deemed a qualifying bid; or

(C) a requirement regarding the form of a bid, including whether:

(i) a bidder must mark its bid against a stalking horse agreement or a template of the movant's preferred sale terms;

(ii) a bidder may bid for a portion of the assets; or

(iii) a bidder must leave its bid open for a specified period.

(3) a proposed form of stalking horse bidder protection, including:

(A) the amount of an initial overbid and any successive bidding increments;

(B) a no-shop, no-solicitation, or other limitation on the movant's ability or right to solicit higher or better offers;

(C) an agreement to seek an order authorizing break-up or topping fees and reimbursement of expenses, and the terms and conditions of payment; or

(D) a requirement that the stalking horse bidder receive a bidding credit equal to the amount of the break-up fee, topping fee, or reimbursement of expenses, or a requirement that the stalking horse bidder, upon submitting a higher or better bid, is deemed to have waived the break-up fee, topping fee, or reimbursement of expenses.

(4) a provision that would authorize the movant to modify any bidding or auction procedures without court order.

(5) a provision that would authorize the movant to accept and close on an alternative qualified bid if the successful bidder fails to close the transaction.

(c) Order. A proposed order approving bidding and auction procedures must provide:

(1) the date, time, and place at which the auction will be conducted, and the method for providing notice to parties of these terms and any changes;

(2) that each participating bidder will be required to confirm that it has not engaged in any bad faith or collusion with respect to the bidding or the sale;

(3) that the auction will be conducted openly and that all parties in interest will be permitted to attend;

(4) that bidding at the auction will be documented, recorded, or videotaped; and

(5) the date on which the court will consider whether to confirm the results of the auction and whether to approve the sale.

2015 Comment

This Rule was formerly part of the Appendix to Local Bankruptcy Rule 6004-1(c), which contained the Guidelines for Sale of Estate Property in Chapter 11 cases. The Rule addresses only requests for approval of bidding and auction procedures for a sale of property. The information and disclosures that must be included in a motion to sell property are now addressed in revised Local Bankruptcy Rule 6004-1.

D.N.J. LBR 6004-3. Public Auction

(a) Advertisement. Any advertisement regarding a public auction of property under § 363 of the Code must specify all terms and conditions of the auction.

(b) Announcement of terms. The terms and conditions of the auction must be announced before the start of the auction.

(c) Alternative bidder. If the highest bidder fails to pay the balance of the bid price, the sale may proceed with the next highest bidder.

(d) Report. An auctioneer report must be filed not later than 14 days after the conclusion of bidding.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 6005-1. The Rule now permits conclusion of the sale to the next highest bidder from the public auction if the highest bidder defaults. Also, the deadline for filing an auctioneer report formerly in Local Bankruptcy Rule 2014-1 has been shortened to 14 days after the auction.

The portion of the former Local Bankruptcy Rule 6004-1(a), which required the trustee, debtor, or authorized representative to attend the auction, has been deleted because that fiduciary duty arises independent of the Rule.

D.N.J. LBR 6004-4. Liquidator

(a) Motion. A motion to sell property under § 363 of the Code by use of a liquidator must include:

(1) the information required of an auctioneer under Local Bankruptcy Rule 2014-2;

(2) a description of any state and local laws and regulations applicable to the sale and the liquidator's proposal for compliance;

(3) a description of the effect of the sale on any leasehold agreement; and

(4) a description of all applicable agreements between and among the liquidator and any affiliate, the debtor, the trustee, and others, including agreements that provide for the following:

(A) financing;

(B) acquisition of an interest in estate property; or

(C) indemnification or release of claims.

(b) Report. The liquidator must file a report not later than 14 days after the conclusion of the sale.

2015 Comment

This Rule is derived from former Local Bankruptcy Rule 2014-1(d). It imposes the disclosure and reporting requirements for auctioneers on liquidators.

D.N.J. LBR 6004-5. Payment of a Professional Person for Services Relating to Use, Sale, or Lease of Property

(a) A motion for the use, sale, or lease of property may include a request to pay a commission or fee at closing to a professional person retained to provide services relating to the use, sale, or lease. The motion, Local Form *Notice of Proposed Private Sale*, and proposed order must: (i) identify the professional; (ii) describe the services rendered; and (iii) state the amount to be paid.

(b) A movant seeking shortened time for notice and hearing with respect to a motion for the use, sale, or lease of property which includes a request to pay commission or fee to a professional person at closing under paragraph (a), must set forth in Local Form *Application for Order Shortening Time,* cause for shortened time for notice and hearing concerning the request for payment.

2017 Comment

This Rule is amended to clarify that when a movant seeks to shorten the time for notice and hearing concerning a motion for use, sale or lease of property, and the motion includes a request for payment of professional fees at closing, the movant must in the Application to Shorten Time, set forth the reason why the professional person should be compensated on shortened notice.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 6004-1(b).

The Rule was expanded to permit, under any Chapter, the payment at closing of the commission or fees of a retained professional person under the conditions provided.

D.N.J. LBR 6007-1. Abandoning

(a) By trustee or debtor in possession. A trustee or debtor in possession seeking to abandon property under § 554(a) of the Code must file Local Form *Notice of Proposed Abandonment*. The clerk will send notice of the proposed abandonment.

(b) By party in interest. A party in interest seeking to compel abandonment of property of the estate under § 554(b) must file a motion in accordance with the Local Rules and serve the parties specified in Bankruptcy Rule 6007(b).

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2020 Comment

Federal Rule 6007 was amended effective December 1, 2019 to specify the parties who must be served with a motion to compel abandonment brought by a party in interest. This Rule is amended accordingly and seeks to highlight the differences between the two procedures.

2015 Comment

The changes to this Rule are stylistic.

D.N.J. LBR 7003-1. Commencing an Adversary Proceeding

A complaint filed by non-electronic means must be accompanied by a completed adversary proceeding cover sheet. A complaint filed electronically does not require a cover sheet.

2025 Comment

The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2016 Comment

The 2015 Comment to this Rule is amended to reference the change in numbering of the National Director's Form to 1040 *Adversary Proceeding Cover Sheet.*

2015 Comment

This Rule incorporates former Local Bankruptcy Rule 7001-1, which has been deleted.

The adversary proceeding cover sheet should conform to Director's Form 1040.

D.N.J. LBR 7007-1. Declaration, Certification, or Affidavit

Factual allegations presented in support of a motion must be contained in a sworn statement of the type referenced in 28 U.S.C. § 1746. The statement must be limited to facts within the personal knowledge of the signatory and attested to under penalty of perjury. The statement may not be combined with any legal argument.

2025 Comment

This Rule is amended for clarity. The signature of a notary public is not required but the statement must contain wording in substantially the following form: "I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct. Executed on (date). (Signature)." The sworn statement takes the place of live testimony which is generally not permitted on motion days without prior court authorization. See, D.N.J. LBR 9013-3(e).

Additional amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2017 Comment

This Rule is new. It requires that certified submissions to the court contain only facts, and that the party signing the document have personal knowledge of those facts. To the extent any adversary proceeding, motion under Local Bankruptcy Rule 9013-1 or other paper seeks relief based on factual matters, compliance with this Rule is required.

D.N.J. LBR 7015-1. Amended Pleading

(a) Proposed amended pleading. A party seeking leave to file an amended pleading must attach to the motion (i) a copy of the proposed amended pleading; and (ii) a redlined or similar document marked with the changes to the original pleading.

(b) Filing and service. If leave is granted, the movant must file and serve the amended pleading.

(c) Timing. A motion to amend pleadings must be filed not later than 30 days after the close of fact discovery.

2017 Comment

Subdivision (c) has been added to provide a deadline for filing motions to amend pleadings, consistent with Federal Rule of Civil Procedure 16(b)(3)(A).

2015 Comment

This Rule is new. It is derived from Local Civil Rule 7.1(f). Subdivision (a)(ii) imposes the additional requirement that the movant include a document comparing the proposed amended pleading to the original.

D.N.J. LBR 7016-1. Pretrial Procedure

(a) Duty to confer. The parties must confer on the dates to be included in Local Form *Joint Order Scheduling Pretrial Proceedings and Trial*. Based on those dates, the court will set a trial date.

(b) Appearance at pretrial conference. An appearance by all parties is required, unless the parties agree on dates and submit, to the chambers's email address, not later than 3 days before the scheduled pretrial conference, Local Form *Joint Order Scheduling Pretrial Proceedings and Trial* and Local Form *Mediation Order* when required under D.N.J. LBR 9019-2.

(c) Initial disclosures. The parties must exchange the initial disclosures required by Federal Rule 26(a)(1)(A) not later than 7 days before the scheduled pretrial conference. Any modification of the Federal Rule 26 disclosure requirements must be included in the *Joint Order Scheduling Pretrial Proceedings and Trial*.

(d) Additional terms. By agreement, the parties may add terms to the joint order, including: (i) the scope of discovery; (ii) protocol concerning preservation, storage, and production of discoverable information, including electronically stored information; or

(e) Consent to Adjudication. By default, the parties are deemed to have consented to the Bankruptcy Court's adjudication and entry of final judgment on all claims and defenses raised in the proceeding. To the extent any party does not so consent, that party must comply with Federal Rules of Bankruptcy Procedure 7008 and 7012, as well as file a motion within the later of 30 days following either: (i) the of entry of the initial *Joint Order Scheduling Pretrial Proceedings and Trial* or (ii) the filing of a responsive pleading, seeking a determination as to whether the bankruptcy court may adjudicate to final judgment any or all claims and defenses.

2025 Comment

Subdivision (b) of this Rule is amended for stylistic purposes.

2017 Comment

This Rule is amended to delete a provision which allowed for permissive addition of deadlines for joining parties and amending pleading to the joint order, because Federal Rule of Civil Procedure 16(b)(3)(A) provides that inclusion of those terms is mandatory.

This Rule is further amended as a result of changes to Bankruptcy Rules 7008 and 7012; specifically, the removal of the requirement that the pleader state whether the proceeding is core or non-core. Subdivision (e) was added to reflect the court's adoption of a presumption of consent to adjudication in the bankruptcy court.

2015 Comment

This Rule is new. It codifies the existing practice of allowing parties to confer and submit a consensual proposed *Joint Order Scheduling Pretrial Proceedings and Trial* in lieu of appearance at a pretrial conference.

The date for the pretrial conference is set in the summons issued by the clerk when the adversary proceeding is initiated.

Subdivision (c) modifies the deadline in Federal Rule 26(a)(1)(C) for the exchange of initial disclosures to reflect the timing of events in an adversary proceeding.

Local Bankruptcy Rule 9019-2 addresses mediation procedures.

D.N.J. LBR 7026-1. Discovery Subject to a Claim of Privilege

When a party asserts a claim of privilege in response or objection to a discovery request, the party must identify the nature of the privilege claimed and indicate whether with respect to the privilege (i) any document exists, or (ii) any oral communication occurred.

2015 Comment

This Rule is amended to delete the reference to Local Civil Rules 26.1 and 37.1.

Local Bankruptcy Rule 7016-1(c) addresses initial disclosures under Federal Rule 26(a)(1)(A).

Local Bankruptcy Rule 7037-1 addresses a motion for an order compelling disclosure or discovery.

D.N.J. LBR 7033-1. Interrogatories

Interrogatories must comply with Local Civil Rule 33.1.

2025 Comment

This Rule incorporates by reference the requirements of Local Civil Rule 33.1.

2015 Comment

This Rule is new. It is derived from Local Civil Rule 33.1. Subdivision (c) of Local Civil Rule 33.1 is now incorporated in Local Bankruptcy Rule 7026-1.

The answering party may request that interrogatories be provided in an electronically fillable format.

D.N.J. LBR 7036-1. Requests for Admission

Requests for admission must comply with Local Civil Rule 36.1.

2025 Comment

This Rule incorporates by reference the requirements of Local Civil Rule 36.1.

2015 Comment

This Rule is new. It is derived from Local Civil Rule 36.1. Subdivision (c) of Local Civil Rule 36.1 is now incorporated in Local Bankruptcy Rule 7026-1.

The answering party may request that requests for admission be provided in an electronically fillable format.

D.N.J. LBR 7037-1. Motion for an Order Compelling Disclosure or Discovery

(a) Certification. The certification required under Bankruptcy Rule 7037 must identify the date and means by which the movant conferred or attempted to confer with the person or party failing to make disclosure or provide discovery.

(b) Supporting evidence. The certification in support of a motion for an order compelling disclosure or discovery must include as an exhibit a copy of the pertinent portion of the deposition, interrogatory, request for admission, response, or any other document on which the motion is based.

2025 Comment

D.N.J. LBR 2004-1 addresses subpoenas issued under Bankruptcy Rule 2004.

2015 Comment

This Rule is new. It is derived from Local Civil Rule 37.1.

D.N.J. LBR 7055-1. Default; Default Judgment

(a) Entering a Default. A party requesting entry of default must file:

(1) a request for entry of default;

(2) a certification stating that:

(A) the party against whom default is sought was properly served with the summons and complaint;

(B) the party has failed to plead or otherwise defend within the allowed time; and

(C) the party has not requested or the party has not been granted an extension of time to plead or otherwise defend; and

(3) Local Form *Entry of Default*.

(b) Entering a Default Judgment under Federal Rule 55(b)(1). A party requesting entry of default judgment under Federal Rule 55(b)(1) must file:

(1) a request for entry of default judgment;

(2) a certification that includes:

(A) a statement regarding the defendant's military status in compliance with 50 U.S.C. § 3931; and

(B) a statement that the defendant is not a minor or incompetent person, unless represented by a fiduciary who has appeared; and

(3) Local Form *Default Judgment for a Sum Certain*.

(c) Entering a Default Judgment under Federal Rule 55(b)(2). A party applying for entry of default judgment under Federal Rule 55(b)(2) must file:

(1) a request for entry of default judgment;

(2) a certification that includes:

(A) facts supporting at least one cause of action asserted in the party's pleading;

(B) a statement regarding the defendant's military status in compliance with 50 U.S.C. § 3931; and

(C) a statement that the defendant is not a minor or incompetent person, unless represented by a fiduciary who has appeared;

(3) any documentary evidence;

(4) a memorandum of law or a statement why no memorandum of law is necessary; and

(5) a proposed judgment.

(d) Proof Hearing. The court will schedule a proof hearing if necessary.

2023 Comment

This Rule is amended to update the citation to 50 App. U.S.C. § 521 of the Servicemembers Civil Relief Act. That section is now codified at 50 U.S.C. § 3931.

2015 Comment

This Rule is amended to clarify that a party seeking entry of default or default judgment need file only a request, not a motion.

D.N.J. LBR 7056-1. Summary Judgment; Statement of Material Facts Not in Dispute

(a) Statement of Material Facts Not in Dispute. A motion for summary judgment must include a statement which sets forth material facts as to which there does not exist a genuine issue, in separately numbered paragraphs citing to the affidavits and other documents submitted in support of the motion. A motion for summary judgment unaccompanied by a statement of material facts not in dispute may be dismissed. The opponent of summary judgment must file, with its opposition papers, a responsive statement of material facts, addressing each paragraph of the movant's statement, indicating agreement or disagreement and, if not agreed, stating each material fact in dispute and citing to the affidavits and other documents submitted in connection with the motion; any material fact not disputed will be deemed undisputed for purposes of the summary judgment motion. In addition, the opponent may also file a supplemental statement of disputed material facts, in separately numbered paragraphs citing to the affidavits and other documents submitted in connection with the motion, if necessary to substantiate the factual basis for opposition. The movant must respond to any supplemental statement of disputed material facts, with its reply papers.

(b) Format. Each statement of material facts may be included in a party's brief as part of the Statement of Facts with the separate numbering required by this Rule and may not contain legal arguments or conclusions of law.

2017 Comment

This Rule is new. Subdivision (a) is derived from Local Civil Rule 56.1. Subdivision (b) permits the required Statement of Material Facts Not in Dispute to be included in a party's brief as part of the Statement of Facts with the separate numbering required by this Rule, thereby eliminating the need for the filing of a separate document.

D.N.J. LBR 7058-1. Entering Judgment

(a) Order template. A party submitting a proposed judgment must use Local Form *Order Template – Adversary*.

(b) Title. The title of a proposed judgment must identify the relief sought.

(c) Revised proposed judgment. If the court's ruling differs from a proposed judgment, the prevailing party must not later than 7 days after the court's ruling submit to the chambers's email address and serve on all interested parties a revised proposed judgment reflecting the court's ruling. The email must identify the parties served and the manner of service.

(d) Objection period. An objection to a judgment submitted under subdivision (c) must be submitted to the chambers's email address and served on all interested parties not later than 7 days after submission of the judgment. The objection must include an alternative proposed judgment. The court may conduct a hearing in its discretion.

2025 Comment

This Rule applies to a judgment entered after a trial in an adversary proceeding. When an adversary proceeding is resolved by consent order, Local Bankruptcy Rule 9019-4 applies. The amendments to this Rule are stylistic to conform with the Bankruptcy Rules.

2024 Comment

Local Bankruptcy Rule 9021-1 is superseded by new Local Bankruptcy Rule 9019-4.

2015 Comment

This Rule is new. It includes provisions of former Local Bankruptcy Rules 9072-1 and 9072-2, which have been deleted.

The 7 day objection period in subdivision (d) does not apply if the parties inform the court that they agree to the entry of the revised judgment.

Local Bankruptcy Rule 9013-4 addresses proposed orders.

Local Bankruptcy Rule 9021-1 addresses consent orders.

D.N.J. LBR 7065-1. Order to Show Cause

A party applying for an order requiring an adverse party to show cause why a preliminary injunction or temporary restraining order should not issue must file a verified complaint or verified counterclaim. An order to show cause will not be granted except on a showing by affidavit, other document complying with 28 U.S.C. § 1746 or verified pleading of good and sufficient reasons why a procedure other than by notice of motion is necessary.

2025 Comment

This Rule is amended to conform with the supporting verified pleading requirements set forth in Local Civil Rule 65.1.

2015 Comment

This Rule is new. It is derived from Local Civil Rule 65.1.

Former Local Bankruptcy Rule 9075-1, which addressed emergency orders, has been deleted. Use of an order to show cause is limited to an adversary proceeding in which immediate injunctive relief is requested.

An order to show cause served at the beginning of the action is not a substitute for a summons under Bankruptcy Rule 7004.

Local Bankruptcy Rule 9013-2(c) addresses an application for an order shortening time on a motion.

D.N.J. LBR 7067-1. Registry Fund

(a) Eligible funds. Registry funds maintained under 28 U.S.C. § 2041 may include:

(1) unclaimed distributions in Chapter 7, 12, or 13 cases remaining unpaid 90 days after the distribution deposited under Local Bankruptcy Rule 3011-1; and

(2) funds held in escrow by court order pending resolution of a dispute.

(b) Deposit of funds.

(1) No funds may be sent to the court for deposit in the court's registry without a court order.

(2) The party depositing or transferring funds to the court's registry must serve on the clerk the order permitting the deposit.

2015 Comment

This Rule is amended to avoid unnecessary repetition of the court's *Amended Order Regarding Deposit and Investment of Registry Fund*.

Subdivision (b)(1) does not apply to unclaimed distributions deposited by a trustee under § 347(a) of the Code. Local Bankruptcy Rule 3011-1 addresses unclaimed distributions.

D.N.J. LBR 8001-1. Appeal to District Court

The Local Civil Rules govern the procedure for appeal to the District Court.

2025 Comment

This Rule is new and incorporates by reference Local Civil Rules on bankruptcy appeals.

D.N.J. LBR 9001-1. Definitions

The following words and phrases used in these Local Bankruptcy Rules have the meanings indicated:

"Bankruptcy Rules" means the Federal Rules of Bankruptcy Procedure.

"Chambers's email address" means the email address for the office of the judge before whom a case or proceeding is pending. The email address for each judge's chambers is available on the court's website.

"Court" means the United States Bankruptcy Court for the District of New Jersey.

"Court's website" means www.njb.uscourts.gov.

"District Court" means the United States District Court for the District of New Jersey.

"Federal Rule" means the Federal Rules of Civil Procedure.

"Local Civil Rules" means the Local Civil Rules of the United States District Court for the District of New Jersey.

"Local Form" means a form prescribed by the court. All local forms are available on the court's website.

2025 Comment

This Rule is amended to add reference to the court's website.

2015 Comment

This Rule is new.

D.N.J. LBR 9004-1. General Requirements of Form

(a) Attorney; party represented. All documents must contain in the top left corner of the first page the following information:

(1) the name, address, telephone number, and direct email address of the attorney of record for the filing party; and

(2) the name of the party represented, or if a party is self–represented, the name, address, telephone number, and email address of the self-represented party.

(b) Caption. A document requiring a caption must include the Chapter of the case, initials of the judge, and applicable hearing date.

2025 Comment

This Rule is amended to emphasize subdivision (a)(1), which requires the email address of the attorney of record, as opposed to that of the law firm.

2015 Comment

This Rule was formerly Local Bankruptcy Rule 9004-2.

D.N.J. LBR 9009-1. Local Forms

Use of the Local Forms cited in these Rules is mandatory.

2025 Comment

This rule is amended to distinguish between mandatory and recommended Local Forms. Additional amendments to this Rule are stylistic.

2015 Comment

This Rule is new. Forms can be found on the court's website.

D.N.J. LBR 9010-1. Admission of Attorney to Practice

(a) Scope of admission. The bar of this court consists of attorneys admitted to practice before the United States District Court for the District of New Jersey. An attorney of this bar is within the disciplinary jurisdiction of the District Court and is bound by the Rules of Professional Conduct.

(b) Admission *pro hac vice.*

(1) Local counsel must file on behalf of an attorney seeking admission *pro hac vice* an application and Local Form *Order for Admission Pro Hac Vice* on notice to the debtor, any official committee, and the United States trustee, and make the payments required by the *Order for Admission Pro Hac Vice,* including:

(A) for any year in which the admitted attorney continues to represent a client in a matter pending in the court, payment to the New Jersey Lawyers' Fund for Client Protection, as provided by New Jersey Court Rule 1:28-2(a) and Local Civil Rule 101.1(c)(2); and

(B) in each case, the fee prescribed by Local Civil Rule 101.1(c)(3).

(2) The application must include a certified statement from the attorney seeking admission that discloses:

(A) each bar in which the attorney seeking admission is a member in good standing, and the year of admission;

(B) whether a disciplinary proceeding is pending against the attorney seeking admission, and if so, the jurisdiction, the nature of the alleged violation, and the likely date of disposition; and

(C) whether discipline has ever been imposed against the attorney seeking admission. If discipline has been imposed during the five year period preceding the application, the certification must state the date, jurisdiction, nature of the violation, and penalty imposed.

(3) Local counsel must file Local Form *Notice of Appearance*.

(4) Only local counsel, and not the attorney admitted *pro hac vice*, may sign and file papers and receive notices and service of papers. Unless otherwise permitted by the court, local counsel must attend all hearings and proceedings before the court.

(5) An attorney admitted *pro hac vice* must promptly advise the court of the disposition of a pending disciplinary proceeding or the institution of a new disciplinary proceeding against the attorney.

(6) An attorney admitted *pro hac vice* is within the disciplinary jurisdiction of the District Court and is bound by the Rules of Professional Conduct.

(7) An attorney admitted *pro hac vice* is deemed to have certified under Federal Rule 11(b) to those pleadings, written motions or other papers that the attorney admitted *pro hac vice* signs, files, submits or later advocates to the court.

2025 Comment

This Rule is amended to update subdivisions (b)(1) and (b)(4); and adds subdivision (b)(7) to be consistent with Local Civil Rule 101.1(c)(6).

2019 Comment

Subdivision (b)(2)(C) of this Rule is amended to be consistent with Local Civil Rule 101.1(c)(1).

2015 Comment

This Rule is derived in part from Local Civil Rule 101.1(c). The Rule allows admission by application rather than motion, and allows good standing to be established by attorney certification rather than a certificate of good standing.

An attorney of this bar, including one admitted *pro hac vice,* is bound by Local Civil Rule 103.1(a) regarding the Rules of Professional Conduct and Local Civil Rule 104.1 regarding discipline of attorneys.

D.N.J. LBR 9010-2. Substitution or Withdrawal of Appearance

(a) Substitution of attorney. An attorney seeking to substitute for another attorney must file Local Form *Notice of Substitution of Attorney*. Both attorneys must sign the form.

(b) Withdrawal of appearance. A motion is required to withdraw as counsel unless another attorney is substituted.

2025 Comment

Subdivision (b) of this Rule is amended to add a motion requirement, which also applies to counsel admitted *pro hac vice*, as set forth in Local Civil Rule 101.1(c)(5).

2016 Comment

The final sentence of the 2015 Comment to this Rule means that an attorney who has already entered an appearance in a case may not withdraw his appearance by filing a *Notice of Substitution of Attorney* that substitutes in a self-represented litigant. Subdivision (b) requires a motion to be relieved as counsel. A motion is not required for an attorney entering a case on behalf of a previously self-represented litigant, that may be done by filing a *Notice of Appearance*.

This Rule is not intended to address employment of professional persons under 11 U.S.C. § 327.

2015 Comment

This Rule is new.

Subdivision (b) is derived from Local Civil Rule 102.1.

A separate *Notice of Substitution of Attorney* must be filed in each case and adversary proceeding in which a substitution has occurred. A motion is required to substitute an attorney for a self-represented litigant.

D.N.J. LBR 9013-1. Motions: Form

(a) Required documents. A motion or cross-motion must consist of the following separate documents:

(1) a notice of motion stating the date, time, and place of the hearing;

(2) one or more certifications containing any facts not already in the record that form the basis of the relief requested. The certification must be based on personal knowledge and otherwise comply with Local Bankruptcy Rule 7007-1;

(3) a memorandum of law stating the legal basis for the relief requested, as necessary;

(4) a proposed order; and

(5) Local Form *Certification of Service*.

(b) Waiver of 14 day stay. A request for a waiver of the stay imposed by Bankruptcy Rules 4001(a)(4), 6004(h), or 6006(d) must appear in the title of the notice of motion. The basis for the requested waiver must be stated in the motion.

2025 Comment

Subdivision (a)(2) is amended to emphasize that a supporting certification must be based on personal knowledge and be made under penalty of perjury as set forth in 28 U.S.C. § 1746 and Local Bankruptcy Rule 7007-1.

Subdivision (a)(3) is amended to eliminate the use of a Statement Why No Brief is Necessary.

Subdivision (b) is amended to require a statement setting forth the basis for waiver and comport with the renumbering of the Bankruptcy Rules.

2017 Comment

This Rule is amended to cross reference Local Bankruptcy Rule 7007-1.

2015 Comment

Subdivision (a) is amended to specify the documents required for a motion. Each item specified in subdivisions (a)(1) – (5) must be a separate document. A motion or cross-motion must be served by non-electronic means under Local Bankruptcy Rule 5005-1(c)(1)(B).

Former Local Bankruptcy Rules 9013-2 and 9013-3 have been incorporated into this Rule.

The proposed order must comply with Local Bankruptcy Rules 9009-1 and 9013-4.

Certain former subdivisions of this Rule have been incorporated in Local Bankruptcy Rules 9013-2 through 9013-4.

D.N.J. LBR 9013-2. Motions: Filing and Service; Hearing Date

(a) Filing and service.

(1) Unless specified elsewhere in these Rules, a motion must be filed and served under Bankruptcy Rule 7004 not later than 21 days before the hearing date.

(2) Any (i) opposition to a motion or (ii) cross-motion must be filed and served not later than 7 days before the hearing date. A cross-motion must directly relate to the original motion.

(3) Any (i) reply or (ii) opposition to a cross-motion must be filed and served not later than 4 days before the hearing date.

(b) Hearing date. Unless specified elsewhere in these Rules, the movant must schedule the hearing date for the motion. Hearing dates for each judge are available on the court's website.

(c) Application to shorten time. A movant seeking shortened time for hearing on a motion must file Local Forms *Application for Order Shortening Time* and *Order Shortening Time Period for Notice, Setting Hearing and Limiting Notice*. Movant must immediately notify the court at the presiding judge's chambers's email address. If granted, the motion must be served as set forth in the Order Shortening Time and the movant must file Local Form *Certification of Service*.

2025 Comment

Subdivision (a)(1) is amended to clarify the service requirements for contested matters under Bankruptcy Rules 7004, 9013, and 9014.

Subdivision (c) is amended to require contemporaneous notice to chambers.

2020 Comment

The changes to Bankruptcy Rule 9036 (effective December 1, 2019) do not eliminate the requirement that a motion or cross-motion must be served by non-electronic means because motions must be served in accordance with Bankruptcy Rule 7004.

2019 Comment

Subdivisions (a)(1) and (b) are amended to include the phrase "unless specified elsewhere in these Rules" to account for rules, such as Local Bankruptcy Rule 4001-4, that permit an expedited motion procedure.

2015 Comment

This Rule is new. It is derived from Local Bankruptcy Rule 9013-1.

A motion or cross-motion must be served by non-electronic means under Local Bankruptcy Rule 5005-1(c)(1)(B). Service of a motion or cross-motion by e-mail or Notice of Electronic Filing is not proper service.

Local Bankruptcy Rule 5071-1 addresses adjournment requests.

Local Bankruptcy Rule 7065-1 addresses use of an order to show cause.

D.N.J. LBR 9013-3. Motions: Hearing

(a) Duty to confer on opposed motion. If opposition to a motion is filed, the parties must confer before the hearing to determine whether the issue can be resolved.

(b) Duty to report settlement or withdrawal of motion. If the parties settle a motion, or the movant withdraws a motion, the movant must immediately file Local Form *Status Change Form* and notify the court at the chambers's email address.

(c) Remote appearances. Each judge's policy regarding remote appearances is available on the court's website.

(d) Oral argument.

(1) Uncontested motions. All motions will be decided without oral argument unless opposition is filed.

(2) Contested motions. The court will permit oral argument from only the movant or a party that has filed opposition to a motion. The court retains discretion to decide contested motions without oral argument.

(e) Oral testimony. A party may not, without prior court authorization, present oral testimony at a hearing on a motion, except for a motion under § 363(b), (c), (f), or § 364 of the Code.

2025 Comment

Beyond the submission of a status change form under subdivision (b), parties seeking an order approving a settlement should be guided by D.N.J. LBR 9019-3. Additional amendments to subdivision (b) are stylistic.

Subdivision (c) is amended to reference each judge's policy regarding remote appearances.

2024 Comment

Local Bankruptcy Rule 9021-1 is superseded by new Local Bankruptcy Rule 9019-4.

2023 Comment

Subdivision (d) is amended to emphasize that, for contested motions, the court may not require oral argument.

2015 Comment

This Rule is new. It is derived from former Local Bankruptcy Rule 9013-1.

An appearance is permitted, but not required, on an unopposed motion. On an opposed motion, a party may choose not to appear and rely on its papers, but the party must inform chambers.

Except as provided in subdivision (e), and consistent with Local Bankruptcy Rule 9013-1(a)(2),

factual evidence in support of a motion must be presented through the certification of a person with personal knowledge.

Local Bankruptcy Rule 9021-1 addresses consent orders.

Local Bankruptcy Rule 5071-1 addresses a request for an adjournment.

D.N.J. LBR 9013-4. Motions: Proposed Order

(a) Separate document. A proposed order must be a separate document.

(b) Order Template. A party submitting a proposed order must use Local Form *Order Template*.

(c) Title. The title of a proposed order must identify the relief sought.

(d) Order to be submitted. If the court instructs a party to submit a new proposed order to reflect its ruling during a hearing, the new proposed order must be submitted to the chambers's email address. The same procedure must be used if the parties resolve a pending motion prior to the hearing and the calendar is marked "order to be submitted." The proposed order will be held for a 7-day objection period. If the parties seek immediate entry of the proposed order, they must inform the court in their email that they have filed Local Form *Certification Concerning Proposed Order*.

(e) Objection period. An objection to an order submitted under subdivision (d) must be submitted to the chambers's email address and served on all interested parties not later than 7 days after submission of the order. The objection must include an alternative proposed order. The court may conduct a hearing on the objection in its discretion.

2024 Comment

Subdivision (d) of this Rule is amended to coincide with new Local Form *Certification Concerning Proposed Order*. The form comports with new Local Bankruptcy Rule 9019-4.

Local Bankruptcy Rule 9021-1 is superseded by new Local Bankruptcy Rule 9019-4.

2018 Comment

This Rule is amended to reflect the prevailing practice of attorneys requesting that a calendar be marked "order to be submitted" and to clarify the procedure for seeking immediate entry of a proposed order. Local Form *Certification Concerning Order to be Submitted* is new and is intended to document the parties' consent to entry of the proposed order.

Consent orders resolving adversary proceedings and those filed in lieu of a motion are governed by Local Bankruptcy Rule 9021-1.

2015 Comment

This Rule is new. It is derived from former Local Bankruptcy Rules 9072-1 and 9072-2, which have been deleted.

The 7-day objection period in subdivision (e) does not apply if the parties inform the court that they agree to entry of the revised order.

Local Bankruptcy Rule 7058-1 addresses proposed judgments in adversary proceedings.

Local Bankruptcy Rule 9021-1 addresses consent orders.

D.N.J. LBR 9013-5. Motions: First Day Matters in a Chapter 11 Case

(a) Required forms. A Chapter 11 debtor requesting expedited hearing of a motion or application filed at the beginning of a case must file with the motion or application the following documents:

(1) Local Form *Application for Expedited Consideration of First Day Matters*; and

(2) Local Form *Order Regarding Application for Expedited Consideration of First Day Matters*.

(b) Notice to court. The debtor must, immediately after filing the documents in subdivision (a), notify the court through the chambers's email address that the debtor has filed an *Application for Expedited Consideration*.

(c) Notice to parties. The debtor must, immediately after filing the documents in subdivision (a), and in no event less than 24 hours before the hearing date, send by email, hand delivery, or overnight mail copies of the documents in subdivision (a) and copies of the motions or applications to the following parties, if applicable:

(1) any secured creditors;

(2) the creditors that hold the 20 largest unsecured claims;

(3) the United States trustee;

(4) the Subchapter V trustee; and

(5) any other necessary parties.

(d) Opposition. Any opposition to relief sought under this Rule may be made at the hearing.

(e) Proposed order. A proposed order under this Rule, other than an order under § 363 of the Code approving the use of cash collateral or an order under § 364 of the Code approving post-petition financing, must provide that any party may move for modification of the order.

(f) Service of order. If the court grants relief under this Rule, the debtor must, not later than 48 hours after entry of the order and in the manner directed by the court, serve the order on the parties in subdivision (c) and any other party identified by the court.

2025 Comment

Subdivision (c) is amended to eliminate notice by fax. Subdivision (c)(4) is amended to add reference to the Subchapter V trustee.

For first day matters in a Chapter 11 Complex Case, parties should be guided by the court's *General Order Governing Chapter 11 Complex Case Procedures*.

Additional amendments to this Rule are stylistic.

2015 Comment

This Rule is new. It is derived from Appendix A to former Local Bankruptcy Rule 6003-1. These "first day" procedures should be used only at the beginning of a Chapter 11 case for a motion or application for which expedited consideration is necessary to preserve an estate asset or maintain an ongoing business operation.

Subdivision (c) does not relieve a debtor of the service requirements in Bankruptcy Rule 9014 as stated in Local Bankruptcy Rule 5005-1(c).

D.N.J. LBR 9013-6. Extensions of Time in Chapter 11 Cases

(a) Automatic extension. Unless otherwise provided in the Bankruptcy Code, the Bankruptcy Rules, the Local Bankruptcy Rules or court order, if a motion to extend the time to take any action is filed before the expiration of the period prescribed by the Bankruptcy Code, the Bankruptcy Rules, the Local Bankruptcy Rules, the Federal Rules of Civil Procedure, a confirmed plan or court order, the time is automatically extended until the court rules on the motion, without the necessity of a bridge order.

(b) Hearing date. For the avoidance of doubt, there is a presumption that the matter will be heard at the next available hearing date pursuant to D.N.J. LBR 9013-2. If the court denies the motion to extend, then the applicable action must be completed not later than 5:00 p.m., prevailing Eastern Time, on the third business day after the court enters such order.

2025 Comment

This Rule is new. It provides the same bridge order protections set forth in the court's *General Order Governing Chapter 11 Complex Case Procedures* to all Chapter 11 cases. This Rule does not permit automatic extensions where otherwise prohibited by the Bankruptcy Code or Bankruptcy Rules.

D.N.J. LBR 9016-1. Subpoena

(a) Date for compliance. A subpoena issued under Bankruptcy Rule 9016, other than a subpoena to testify at a hearing or trial, must set the date for compliance not earlier than 14 days after service of the subpoena.

(b) Effect of motion to quash or modify. A motion to quash or modify a subpoena filed before the date set for compliance stays the subpoena until the court rules on the motion.

2015 Comment

This Rule is new.

The production, inspection, or deposition must take place at the location set by the issuer of the subpoena if the location is within the geographical limits specified in Federal Rule 45(c).

Local Bankruptcy Rule 2004-1 addresses subpoenas issued under Bankruptcy Rule 2004.

D.N.J. LBR 9018-1. Motion to File a Document Under Seal

A party seeking to file a document under seal must file a motion consistent with the procedures in the court's *CM/ECF User's Guide*. The motion must include Local Form *Order Concerning Request to Seal Documents*.

2015 Comment

This Rule is new. A self-represented party should contact the clerk's office for guidance.

If the court grants the motion, the document will be kept under seal until the case or adversary proceeding is closed, at which time the clerk will follow the procedures for the treatment of sealed documents under the judiciary's record retention policy.

If the court denies the motion, the clerk will delete the proposed sealed document.

D.N.J. LBR 9019-1. Mediation: Mediator Qualifications and Compensation

(a) Register of mediators. The clerk must maintain a register of persons designated by the court to serve as mediators in the mediation program.

(b) Mediation program administrator. The chief bankruptcy judge will appoint a judge of this court to serve as the administrator of the program. The administrator will receive applications for designation to the register of mediators, maintain the register, track and compile reports on the program, and otherwise administer the program.

(c) Qualifications and training of mediators.

(1) An applicant to the mediation program must:

(A) have at least 10 years of professional experience in their field of expertise;

(B) certify that they are in good professional standing in their field of expertise;

(C) for applicants who have little or no mediation experience, participate in a mediation training program, either provided or approved by the court, and with the following components:

(i) a mediation skills course for a minimum of 20 hours, followed by

(ii) an advanced mediation skills course for a minimum of 20 hours; and

(iii) for a new mediator, observe mediations conducted by an experienced mediator, or conduct a mediation observed by an experienced mediator;

(D) for applicants who have extensive mediation experience, defined as having conducted a minimum of 100 mediations, but who have little or no experience in the bankruptcy field, participate in a training program covering basic bankruptcy principles; and

(E) agree to accept at least one *pro bono* mediation appointment per year.

(2) An applicant may seek a waiver of the training or mediation experience requirements from the program administrator where an acceptable substitute for the required training or mediation experience is provided.

(d) Application. Each applicant must submit to the administrator a statement of professional qualifications, experience, training, and other information demonstrating the mediator's qualifications.

(e) Court certification. The court in its sole and absolute discretion may grant or deny an application submitted under this Rule. If the court grants the application, the applicant's name will be added to the register for a three-year term, subject to removal either voluntarily or for cause, as the court may determine. At the expiration of the term, the mediator may apply to renew the appointment for another three-year term, which the court, in its sole and absolute discretion, may grant or deny.

(f) Compensation. A mediator must be compensated at a reasonable hourly rate, as agreed to in writing by the parties prior to commencement of the mediation, and may be reimbursed for expenses, as agreed to by the parties. The register will include each mediator's customary hourly rate for mediation services. Court approval of a mediator's fees and expenses is not required. A party in interest objecting to compensation of a mediator must file an objection and request for hearing on notice to the mediator and parties to the mediation.

(g) Expenses. The parties must share equally in the fees and expenses of the mediation, unless otherwise agreed or ordered by the court.

(h) *Pro bono* mediator. If, before the mediation commences, the court determines that a party to a matter assigned to mediation cannot afford to pay the fees and expenses of the mediator, the court may appoint a mediator willing to serve *pro bono* as to that party.

2025 Comment

Subdivision (c)(1) is amended to remove continuing training requirements.

2016 Comment

This Rule is amended to eliminate the requirement of filing a fee application even if part of the fees and expenses sought are from the bankruptcy estate.

2015 Comment

This Rule is new. It supersedes the court's General Order Adopting Mediation Procedures dated November 20, 2013.

D.N.J. LBR 9019-2. Mediation: Procedures

(a) Referral to mediation.

(1) Every adversary proceeding will be referred to mediation after the filing of the initial answer to the adversary complaint, except as provided in subdivisions (a)(2) and (3). A contested matter under Bankruptcy Rule 9014 may also be referred to mediation either by joint request of the parties, or by the court at a status conference or hearing.

(2) An adversary proceeding will not be presumptively referred to mediation if:

(A) one or more parties is self-represented;

(B) a party seeks a temporary restraining order or preliminary injunction;

(C) the action is initiated by the United States trustee; or

(D) the action is initiated against the United States Department of Education under § 523(a)(8) of the Code.

An adversary proceeding identified in subdivisions (a)(2)(A), (B), (C), or (D) may be referred to mediation only by the request of a party, on written notice to the other parties and the court, or by the court's own motion at a status conference or hearing.

(3) A party subject to presumptive mediation may file a motion requesting to be excused from mediation participation, or requesting a determination that the mediation should not proceed. If a party intends to raise an objection to mediation at the pretrial conference, then not later than 7 days before the pretrial conference the objector must notify the court and all parties to the adversary proceeding that an objection to mediation will be raised at the hearing.

(b) Selection of mediator.

(1) The parties must confer regarding the selection of a mediator. The parties may select, or the court may designate, an individual who is not on the court's register of mediators.

(2) When the parties agree to mediation they must submit to the chambers's email address Local Form *Mediation Order*. If the parties also agree on the selection of a mediator, the name of the chosen mediator must be included in the *Mediation Order*.

(3) If the court overrules a party's objection to mediation, the parties must submit a *Mediation Order* not later than 14 days after the pretrial conference.

(4) The plaintiff must immediately serve the mediator with the *Mediation Order*.

(c) Acceptance of appointment.

(1) Promptly after receiving the notification of appointment, the mediator must determine whether there is a basis for disqualification, or whether the mediator is unable to serve for any other reason. The determination should include a search for conflicts of interest in the manner prescribed by the applicable Rules of Professional Conduct for attorneys, and by the applicable rules pertaining to the profession of the mediator.

(2) A party who believes that the mediator has a conflict of interest or other basis for disqualification must promptly advise the mediator, as applicable, and other parties. If the mediator does not withdraw, and the party is dissatisfied with the mediator's decision, the party can seek a determination of the issue from the court.

(d) Organizational conference. Upon entry of the Mediation Order, the parties must promptly contact the mediator to schedule an organizational telephone conference.

(e) Commencement of mediation. Mediation must commence not later than 60 days after the entry of the Mediation Order. Parties may seek an extension of time to conduct the mediation by consent order or by motion.

(f) Pretrial conference. The parties do not need to appear at the pretrial conference if, not later than 3 days before the first scheduled pretrial conference, they submit to the chambers's email address:

(1) Local Form *Mediation Order*; and

(2) Local Form *Joint Order Scheduling Pretrial Proceedings and Trial*.

(g) Effect of mediation on discovery. Unless otherwise ordered by the court, the assignment to mediation stays discovery, but does not stay the initial disclosures required under Federal Rule 26(a)(1). A party may file a motion requesting that discovery proceed during mediation or that Rule 26 disclosures be stayed.

(h) Mediation statement. The mediator will fix a date for the parties to submit to the mediator and serve on other parties a brief statement of facts, applicable law, and proposals for settlement. Mediation statements should not be filed with the court. The mediation statement should not exceed 15 pages. The mediation statement must contain:

(1) any legal or factual issues whose early resolution might reduce the scope of the dispute or contribute to settlement;

(2) the history of any prior settlement discussions, including disclosure of any previous or outstanding offers and demands; and

(3) an estimate of the cost and time to be expended for further discovery, pretrial motions, and trial. At the discretion of the parties, each party's mediation statement may be prepared and submitted to the mediator for review without service of the statement on other parties.

(i) Attendance. Unless excused by the mediator or the court on a showing of good cause or hardship, or if the mediator or the court determines that it is consistent with the goals of the mediation to excuse a particular person from attending, the following persons must attend the mediation session personally:

(1) each party that is a natural person;

(2) if a party, including a governmental entity, is not a natural person then a representative who is not the party's attorney of record and who either has full authority to negotiate and settle the matter on behalf of the party, or has authority to recommend a settlement and has prompt access to any board or governmental body whose approval is required to settle the matter;

(3) the attorney who has primary responsibility for a party's case; and

(4) other interested parties, such as insurers or indemnitors, whose presence is necessary or beneficial to reaching a full resolution of the matter.

(j) Failure to Attend. Willful failure to attend a mediation session may be reported to the court by the mediator or any other party, and may result in the court imposing sanctions.

(k) Confidentiality.

(1) Except as provided in subdivision (k)(2), unless the mediator and the participants agree otherwise in writing, or unless disclosure is permitted by this Rule or applicable law, a mediator, party, or other participant in the mediation may not disclose to an entity or person who was not a participant in the mediation any oral or written communication concerning the mediation, including any document, report or other writing presented or used solely in connection with the mediation.

(2) A mediator must disclose to a proper authority information obtained at a mediation session if required by law, or if the mediator or a party has a reasonable belief that the disclosure will prevent a participant from committing a criminal or illegal act likely to result in death or serious bodily harm.

(3) A mediator shall not testify in any judicial proceeding as to any statements, matters, occurrences or observations arising out of the mediation except by express written agreement of all parties to the mediation. This clause is not applicable to any litigation to enforce the terms of any written agreement reached by the parties in the course of the mediation wherein the meaning or content of such agreement is put in issue.

(4) No written record or transcript of any discussion had in the course of mediation is to be kept, absent express written agreement by the parties.

(l) Attorney conduct. A lawyer representing a client at a mediation session is subject to the Rules of Professional Conduct.

(m) Evidentiary privilege. A mediation communication, whether written or verbal, is not subject to discovery or admissible in evidence in any subsequent proceeding. A party may by

independent evidence establish the substance of the mediation communication in the subsequent proceeding.

(n) Preservation of privileges. The disclosure by a party of privileged information to the mediator does not waive or otherwise adversely affect the privileged nature of the communication.

(o) Termination of mediation. The mediator has the right to terminate the mediation at any time, for any reason, by providing written notice to counsel for all parties.

(p) Procedure following mediation. The mediator must, not later than 7 days after the mediator determines that the mediation has concluded, submit to the court Local Form Mediation Report. If mediation occurred in an Adversary Proceeding, the mediator must indicate in the report if all outstanding issues have been resolved, and whether the case can be closed. A continuing failure to file a Mediation Report may result in removal from the Register of Mediators. If an agreement between the parties has been reached, the agreement must be set forth in a written document signed by all of the parties or their legal representatives. If the matter is not fully resolved, the parties should be guided by the dates in the Joint Order Scheduling Pretrial Proceedings and Trial. If a scheduling order was not entered, the parties should contact chambers.

2021 Comment

Subdivision (a)(2)(D) has been added as an additional exclusion from presumptive mediation.

2016 Comment

This Rule is amended to eliminate the requirement that the mediator file a statement accepting or declining appointment and to stress the importance of filing a Mediation Report.

2015 Comment

This Rule is amended to reflect the court's adoption of a presumptive mediation program. The Rule supersedes the court's General Order Adopting Mediation Procedures dated November 20, 2013.

D.N.J. LBR 9019-3. Compromise or Settlement of Controversy

(a) Motion required. A party seeking an order of the court approving a proposed compromise or settlement of a controversy must file a motion and, except where the motion is heard on shortened time, must file Local Form *Notice of Proposed Compromise or Settlement of Controversy*.

(b) Adversary Proceeding. If the settlement is of an adversary proceeding, the motion should be filed in the adversary case and the *Notice of Proposed Compromise or Settlement of Controversy* filed simultaneously in both the adversary and the main case.

2024 Comment

This Rule is amended to clarify the procedures set forth in Bankruptcy Rule 9019 for approval of a proposed compromise or settlement. Where a motion under Bankruptcy Rule 9019 is not required, parties are directed to D.N.J. LBR 9019-4.

When the motion will be heard on shortened time, the motion should be served as directed by the Order Shortening Time and Local Form *Notice of Proposed Compromise or Settlement of Controversy* is not needed.

2015 Comment

This Rule is new. In addition to the motion required under Bankruptcy Rule 9019, it provides the procedure for a party seeking approval of a proposed compromise or settlement of controversy to supply information to the court to satisfy the clerk's responsibility to send notice under Bankruptcy Rule 2002(a)(3).

Local Bankruptcy Rule 6004-1 addresses the notice requirements under Bankruptcy Rule 2002(a)(2) for a motion to sell property.

D.N.J. LBR 9019-4. Consent Order

(a) Consent order resolving pending motion or adversary proceeding. A proposed consent order resolving a motion or adversary proceeding must be submitted to the chambers's email address. It must attach a filed copy of Local Form *Certification Concerning Proposed Order*.

(b) Consent order in lieu of motion or adversary proceeding. In addition to the requirements set forth in subdivision (a), if a proposed consent order is not related to a pending matter, the proponent must file an application that includes the facts and law supporting entry of the proposed consent order. Objections must be filed not later than 7 days after the filing of the application.

2024 Comment

This Rule is new. It replaces former D.N.J. LBR 9021-1. It augments the procedures set forth in D.N.J. LBR 9013-4(d) and (e). This Rule is intended for use only where all impacted parties are signatories to the consent order. Nothing in this Rule is intended to override compliance with Bankruptcy Rule 9019 where appropriate.

D.N.J. LBR 9024-1. Vacating Dismissal of Case

(a) Motion. A debtor seeking to vacate an order dismissing a case must file a motion in accordance with Bankruptcy Rule 9024 and include Local Form *Order on Motion to Vacate Dismissal of Case*.

(b) Service. The motion required under subdivision (a) must be served on all creditors and parties in interest. The debtor must file Local Form *Certification of Service* evidencing compliance with this subdivision.

2025 Comment

The amendments to this Rule are stylistic.

2018 Comment

This Rule is new. It formalizes the procedure for vacating dismissal of a case.

D.N.J. LBR 9027-1. Removal

(a) Filing. A party seeking to remove a claim or cause of action from a state or federal court to the bankruptcy court must file a notice of removal with the clerk of the bankruptcy court.

(b) Service. A notice of removal must be served under Bankruptcy Rule 7004. Not later than 7 days after service, the party filing the notice must file Local Form *Certification of Service*.

(c) Procedure after removal. Not later than 14 days after the filing of the notice of removal, the party filing the notice must file with the clerk of the bankruptcy court a copy of the docket sheet and all pleadings from the original court.

2015 Comment

This Rule is amended to provide a deadline for filing a certification of service.

D.N.J. LBR 9037-1. Privacy Protection for Transcripts

An entity seeking to redact from a filed transcript information set forth in Bankruptcy Rule 9037(a) must file Local Form *Notice of Intent to Request Redaction* not later than 7 days after the filing of the transcript; and file and provide to the transcriber Local Form *List of Items to be Redacted* not later than 21 days after the filing of the transcript.

2020 Comment

This Rule is amended to eliminate subdivision (a) which is unnecessary because Federal Rule 9037(h) (effective December 1, 2019) sets forth the procedure for redacting information from a previously filed document.

Former subdivision (b) addresses the steps necessary for redacting information from a filed transcript. These steps remain unchanged.

The title has been amended accordingly.

2015 Comment

This Rule is amended to streamline the procedure for protecting personal information in a filed document. On the filing of Local Form *Application Requesting Redaction of Personal Information*, the application and the document containing the personal information will be immediately restricted from public viewing until the court enters Local Form *Order Directing Redaction of Personal Information* and the entity that originally filed the document or such other entity as the court directs files the redacted document. Notice of the redaction is required under the Local Form *Order Directing Redaction of Personal Information*.

The procedure for obtaining redaction of personal information contained in a transcript is derived from the Judicial Conference Policy on Privacy and Public Access to Electronic Case Files.

Bankruptcy Rule 9018 addresses the protection of other kinds of sensitive information.